

ADMIRAL INSURANCE COMPANY

A Delaware Corporation

COMMERCIAL LINES POLICY

THIS POLICY IS NOT OBTAINED PRIMARILY FOR PERSONAL, FAMILY OR HOUSEHOLD PURPOSES.

THIS POLICY CONSISTS OF:

Declarations;

Common Policy Conditions; and

One or more Coverage Parts. A Coverage Part Consists of:

- One or more Coverage Forms; and
- Applicable Forms and Endorsements.

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.



W. Robert Berkley, Jr.
President



Philip S. Welt
Secretary

Administrative Office: 7233 E. Butherus Drive, Scottsdale, AZ 85260 (480) 509-6627

Policy Issuing Office: 232 Strawbridge Drive, Suite 300, Moorestown, NJ 08057
Telephone (856) 429-9200 Facsimile (856)429-8611

Effective Date: 10/23/2025



Carrier: Admiral Insurance Company

Named Insured: MILLENNIUM SPORTS TECHNOLOGIES INC

IMPORTANT – POLICYHOLDER NOTICES

OFAC ADVISORY NOTICE

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the changes you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency." OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

As "Specifically Designated Nationals and Blocked Persons." This list can be located on the United States Treasury's web site – <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.



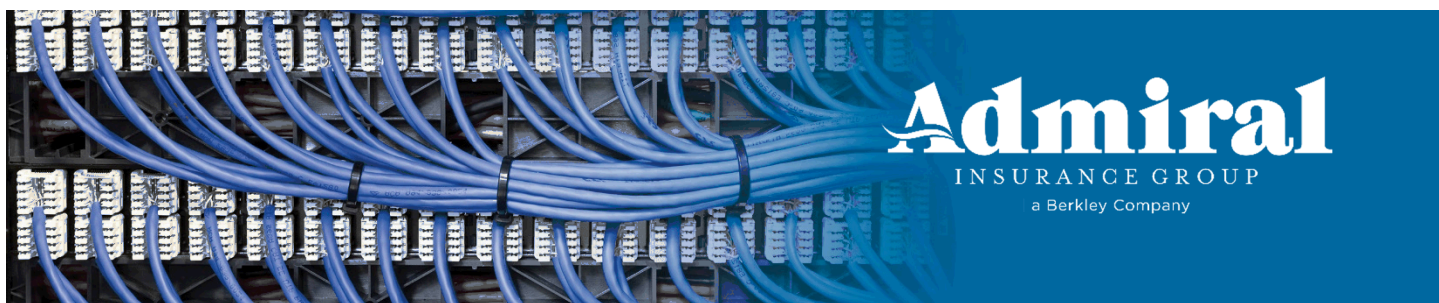
Carrier: Admiral Insurance Company

Named Insured: MILLENNIUM SPORTS TECHNOLOGIES INC

IMPORTANT – POLICYHOLDER NOTICES

"THIS POLICY IS A CLAIMS-MADE POLICY WHICH PROVIDES LIABILITY COVERAGE ONLY IF A CLAIM IS MADE DURING THE POLICY PERIOD OR ANY APPLICABLE EXTENDED REPORTING PERIOD."

THIS CONTRACT IS DELIVERED AS A SURPLUS LINE COVERAGE UNDER THE 'NONADMITTED INSURANCE ACT'. THE INSUREER ISSUING THIS CONTRACT IS NOT LICENSED IN COLORADO BUT IS AN ELIGIBLE NONADMITTED INSURER. THERE IS NO PROTECTION UNDER THE PROVISIONS OF THE 'COLORADO INSURANCE GUARANTY ASSOCIATION ACT'.



Data Breach Coach

As an Admiral Policyholder, you are entitled to receive data breach coach services by Mullen Coughlin, LLC via an Event Hotline dedicated to Admiral Policyholders.

Mullen Coughlin, LLC is a law firm dedicated to solely servicing organizations with data privacy crises, incidents, and risks. Having handled thousands of events, their accessible and motivated attorneys possess experience and talent in pre-breach planning and compliance, breach response, regulatory investigation and management, and privacy litigation defense unmatched in the industry.

Should you experience a Privacy Breach Event,
Mullen Coughlin, LLC will provide the
following:

1. 24/7 Data Breach Hotline: 1(844)572-2113 or admiralbreachhotline@mullen.law
2. Up to 60 minutes of free data breach consulting and/or crisis advisory services following a discovery of a Privacy Breach Event or possible Privacy Breach Event via the Data Breach Hotline.

*Please be aware that the Hotline service is provided by a third party law firm. If you engage this service, it is billable to you at the standard rate per hour outlined in the Admiral Panel Vendor Guidelines. Admiral is not a party to any agreement entered into between Mullen Coughlin, LLC and the Policyholder. Conversations between Mullen Coughlin and the Policyholder are subject to attorney-client privilege.

When contacting the Hotline, please have the following information readily available, if possible:

1. Full name of the Insured Organization
2. Admiral Policy number of the Insured Organization
3. The name and phone number of the individual authorized to discuss this matter

This additional service does not affect or change the terms or conditions of this Policy. If you discover or believe you have sustained a Privacy Breach Event as defined in this Policy, please separately notify the Admiral Claims Department immediately, per the conditions set forth in this Policy.

For more information about the services provided by Mullen Coughlin, please contact your Admiral Representative.

Please Note: The above-referenced data breach services are provided on a gratis basis to Admiral Policyholders and no premium has been charged for these services. Mullen Coughlin, LLC is not an employee, partner, or agent of Admiral. Admiral bears no responsibility, either directly or vicariously for any services provided by Mullen Coughlin, LLC.



**ARCHITECTS & ENGINEERS
PROFESSIONAL LIABILITY POLICY
DECLARATIONS (CLAIMS-MADE AND
REPORTED FORM)**

Carrier: **Admiral Insurance Company**

Policy No.: **EO000055413-05**

Renewal/Rewrite of:

EO000055413-04

Named Insured and Mailing Address
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MILLENNIUM SPORTS TECHNOLOGIES INC
1893 WEST KETTLE AVENUE
LITTLETON, CO 80120

POLICY PERIOD: From 10/23/2025 to 10/23/2026 At 12:01 A.M. Standard Time at the address of the **Named Insured** as stated herein

In consideration of the payment of premium, in reliance upon the statements herein or attached hereto, and subject to all of the terms of this policy, the Company agrees with the **Named Insured** as follows:

PROFESSIONAL SERVICES: Landscape Architect

INSURING AGREEMENTS:

Each Claim or Event

Aggregate

Deductible

Retroactive Date

Architects and Engineers Professional Liability	\$ 2,000,000	\$ 2,000,000	\$ 5,000	12/20/1996
Pollution Liability	\$ 2,000,000	\$ 2,000,000	\$ 5,000	12/20/1996
Drone Liability	\$ 2,000,000	\$ 2,000,000	\$ 5,000	12/20/1996
Rectification Expenses	\$ 2,000,000	\$ 2,000,000	\$ 5,000	12/20/1996
Cyber Liability	\$ 1,000,000	\$ 1,000,000	\$ 5,000	12/20/1996
Media Liability	\$ 2,000,000	\$ 2,000,000	\$ 5,000	12/20/1996
Regulatory Proceedings	\$ 1,000,000	\$ 1,000,000	\$ 5,000	12/20/1996
Privacy Breach Expenses	\$ 25,000	\$ 25,000	\$ 5,000	N/A
Cyber Extortion	\$ 25,000	\$ 25,000	\$ 5,000	N/A
Electronic Data Restoration	\$ 25,000	\$ 25,000	\$ 5,000	N/A
Business Interruption	\$ 25,000	\$ 25,000	\$ 5,000	N/A
Dependent Business Interruption	\$ 25,000	\$ 25,000	\$ 5,000	N/A
Reputational Harm Loss	\$ 25,000	\$ 25,000	\$ 5,000	N/A
Cyber Crime	\$ 25,000	\$ 25,000	\$ 5,000	N/A

Indemnity Period

Beginning: 12 hours

Up to: 180 days

SUPPLEMENTARY PAYMENTS:

(In addition to Policy Aggregate Limit)

	<u>Each Claim or Event</u>	<u>Aggregate</u>
Pre-Claim Assistance	\$ 50,000	\$ 50,000
Disciplinary Proceeding and License Defense Hearing	\$ 5,000	\$ 25,000
ADA, FHA, OSHA, EPA Regulatory Actions	\$ 50,000	\$ 50,000
Subpoena Assistance	\$ 10,000	\$ 10,000
Court Attendance Costs	\$ 10,000	\$ 10,000
Reputation Protection Expense	\$ 25,000	\$ 25,000
Criminal Reward Fund	\$ 25,000	\$ 25,000

OTHER PAYMENTS:

	<u>Each Claim or Event</u>	<u>Aggregate</u>
Emergency Pollution Response Expense	\$ 25,000	\$ 25,000
Senior Executive Officer Personal Funds Theft	\$ 25,000	\$ 25,000
AIA Initial Decision Maker Expense	\$ 5,000	\$ 5,000

Policy Aggregate Limit: \$ 2,000,000

PREMIUM: \$ 9,202.00 Flat Rate

Minimum Retained Premium: 25% Minimum Retained at Inception

Forms attached at inception:

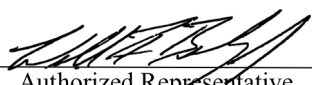
See Schedule of Forms AI 00 18 03 98

Summary of Charges:
Premium - \$9,202.00
Broker Fee - \$350.00
Surplus Lines Tax - \$286.56
SLAS Transaction Fee - \$16.72

This policy is not binding unless countersigned by Admiral Insurance Company or its authorized representative.

Countersigned On: 10/13/2025

At: Austin, TX

By: 
Authorized Representative

"The cost of the insurance coverage provided herein includes a fee to a wholesale intermediary in addition to the premium charges."

This policy is a claims-made policy which provides liability coverage only if a claim is made during the policy period or any applicable extended reporting period.

SURPLUS LINES LICENSEE: CRC Corporate License 183767

This contract is delivered as a surplus line coverage under the 'Nonadmitted Insurance Act'. The insurer issuing this contract is not licensed in Colorado but is an ELIGIBLE nonadmitted insurer. There is no protection under the provisions of the 'Colorado Insurance Guaranty Association Act'.

SCHEDULE OF FORMS

Named Insured: MILLENNIUM SPORTS TECHNOLOGIES INC

Policy No.: EO000055413-05

FORM NUMBER	TITLE
JA10010824	COVER JACKET - ADMIRAL INSURANCE COMPANY
MK01220619	ADMIRAL CYBER BREACH COACH EVENT HOTLINE
DE23340525	ARCHITECTS AND ENGINEERS PROFESSIONAL LIABILITY POLICY CLAIMS MADE DECLARATIONS
AI00180398	SCHEDULE OF FORMS
EO12411112	PRIOR AND PENDING CLAIM OR LITIGATION EXCLUSION ENDORSEMENT
EO12110420	COVERAGE LIMITATION NAMED INSURED'S BUSINESS DESCRIPTION
EO12130512	WARRANTY OF GENERAL LIABILITY COVERAGE INCLUDING PRODUCTS AND COMPLETED OPERATIONS
EO18000625	ADMIRALPRO DESIGN ARCHITECTS AND ENGINEERS PROFESSIONAL LIABILITY
EO18010625	MODIFIED DEDUCTIBLE ENDORSMENT
AI70140722	SERVICE OF SUIT - COLORADO
MK01180625	ADMIRALPRO DESIGN PROFESSIONAL LIABILITY RISK MANAGEMENT PROGRAM

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**PRIOR AND PENDING CLAIM OR LITIGATION
EXCLUSION ENDORSEMENT**

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that this policy does not apply to any **claim(s)** arising from:

- (1) any **claim** or litigation against any **Insured** occurring prior to, or pending as of 10/23/2021 including (but not limited to) **claims**, demands, causes of actions, legal or quasi-legal proceedings, decrees, or judgments;
- (2) any subsequent litigation or **claims** arising from, or based on substantially the same matters as alleged in the pleadings of such prior or pending litigation;
- (3) any act, error, omission or personal injury of any **insured(s)** which gave rise to such prior or pending litigation or **claims**.

All other terms and conditions of the policy remain unchanged and apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**COVERAGE LIMITATION -
NAMED INSURED'S BUSINESS DESCRIPTION**

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY INSURANCE

In consideration of the premium charged, it is understood and agreed that the insurance provided by this Policy does not apply to any **Claim** based upon or arising out of any services not shown as the **Named Insured's** Business on the Declarations page.

It is further agreed that for any **Claim** made or **Suit** brought which is excluded under the terms of this endorsement, the Company shall not have the obligation to defend, adjust, investigate or pay any cost for investigation, defense, adjustment or attorney fees arising out of such **Claims** or **Suits**.

All other terms and conditions of this Policy remain unchanged and apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WARRANTY OF GENERAL LIABILITY COVERAGE INCLUDING PRODUCTS AND COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE PART

In consideration of the premium charged, it is agreed that as a condition of this policy the **Named Insured** shall maintain during the term of this policy a Commercial General Liability policy including Products and Completed Operations.

It is further agreed the insurance provided by this policy does not apply to liability for any **claim** for which coverage is provided by the Commercial General Liability policy including Products and Completed Operations.

It is further agreed that for any **claim** made or **suit** brought which is excluded under the terms of this endorsement, the Company shall not have the obligation to defend, adjust, investigate or pay any cost for investigation, defense, adjustment or attorney fees arising out of such **claims** and **suits**.

ADMIRALPRO™ DESIGN

ARCHITECTS AND ENGINEERS PROFESSIONAL LIABILITY

THIS IS A CLAIMS-MADE AND REPORTED POLICY. PLEASE READ THIS POLICY CAREFULLY.

Throughout this Policy, the words you and your refer to the **Insured** as defined in SECTION II. The words we, us, our and Company refer to the Company as stated on the Declarations Page of this Policy (Company). Words which are in **Bold** writing throughout this document are defined terms within SECTION II. of this Policy.

This Policy shall not be binding upon the Company unless completed by a Declarations Page and countersigned on the aforesaid Declarations Page by a duly authorized representative of the Company.

In consideration of the premium paid and in reliance upon the statements in the Application(s) and any supplementary material(s) provided to the Company by the **Insured**, and subject to the terms and conditions of this Policy (including all endorsements), the Company agrees with the **Insured** as follows:

SECTION I. INSURING AGREEMENTS

Only those insuring agreements indicated in the Declarations with a Limit of Liability other than NIL shall be applicable to the **Insured's** coverage hereunder. If the Limit of Liability on the Declarations shows NIL, that portion of this Policy was not purchased by the **Insured** and no coverage shall apply for the corresponding insuring agreement(s). Each insuring agreement is subject to the Limit of Liability corresponding to that insuring agreement as indicated in the Declarations and the Limit of Liability provided will apply in excess of the applicable Deductible. Coverage provided by any insuring agreement shall only apply to **Incidents** and **Events** taking place within the **Policy Territory**. All **Claims** and **Events** must be reported to us per SECTION VIII. CONDITIONS A. Reporting of Claims, Events and Circumstances.

A. ARCHITECTS AND ENGINEERS PROFESSIONAL LIABILITY

We will pay on behalf of the **Insured** those amounts the **Insured** is legally obligated to pay as **Damages** and **Claim Expenses** because of a **Claim** first made against you during the **Policy Period** and reported to us in writing during the **Policy Period**, and which directly results from a **Professional Incident** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy.

B. POLLUTION LIABILITY

We will pay on behalf of the **Insured** those amounts the **Insured** is legally obligated to pay as **Damages** and **Claim Expenses** because of a **Claim** first made against you during the **Policy Period** and reported to us in writing during the **Policy Period**, and which directly results from a **Pollution Incident** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy.

C. DRONE LIABILITY

We will pay on behalf of the **Insured** those amounts the **Insured** is legally obligated to pay as **Damages** and **Claim Expenses** because of a **Claim** first made against you during the **Policy Period** and reported to us in writing during the **Policy Period**, and which directly results from a **Drone Incident** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy.

D. RECTIFICATION EXPENSES

We will pay on behalf of the **Insured** those **Rectification Expenses** incurred prior to a **Claim** being made and to avoid a **Claim**, and which directly results from a **Design Incident** made by you or on your behalf in the course of your **Professional Services** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy and is reported to us in writing during the **Policy Period**.

E. CYBER LIABILITY

We will pay on behalf of the **Insured** those amounts the **Insured** is legally obligated to pay as **Damages** and **Claim Expenses** because of a **Claim** first made against you during the **Policy Period** and reported to us in writing during the **Policy Period**, and which directly results from a **Cyber Event** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy.

F. MEDIA LIABILITY

We will pay on behalf of the **Insured** those amounts the **Insured** is legally obligated to pay as **Damages** and **Claim Expenses** because of a **Claim** first made against you during the **Policy Period** and reported to us in writing during the **Policy Period**, and which directly results from a **Media Incident** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy.

G. REGULATORY PROCEEDINGS

We will pay on behalf of the **Insured** those **Claim Expenses** and **Fines and Penalties** which are imposed on the **Insured** by civil authorities following a **Regulatory Proceeding** addressing a covered **Cyber Event** that first occurs on or after the applicable Retroactive Date and prior to the expiration date or termination date of this Policy, provided that the **Regulatory Proceeding** is first brought against you during the **Policy Period** and reported to us in writing during the **Policy Period**.

H. PRIVACY BREACH EXPENSES

We will pay on behalf of the **Insured** those **Privacy Breach Expenses** directly resulting from a **Cyber Event** first discovered by a **Senior Executive Officer** during the **Policy Period** and reported to us in writing during the **Policy Period**.

I. CYBER EXTORTION

We will reimburse the **Insured** those **Cyber Extortion Expenses** directly resulting from a **Cyber Event** first discovered by a **Senior Executive Officer** during the **Policy Period** and reported to us in writing during the **Policy Period**.

J. ELECTRONIC DATA RESTORATION

We will pay on behalf of the **Insured** those **Electronic Data Restoration Expenses** which directly result from a **Cyber Event** first discovered by a **Senior Executive Officer** during the **Policy Period** and reported to us in writing during the **Policy Period**.

K. BUSINESS INTERRUPTION

We will reimburse the **Business Interruption Loss** and **Extra Expenses**, sustained by the **Insured** during the **Indemnity Period**, directly resulting from a **Cyber Event** that first occurs during the **Policy Period** and reported to us in writing during the **Policy Period**.

L. DEPENDENT BUSINESS INTERRUPTION

We will reimburse the **Dependent Business Interruption Loss** and **Extra Expenses**, sustained by the **Insured** during the **Indemnity Period**, directly resulting from a **Cyber Event** that first occurs during the **Policy Period** and reported to us in writing during the **Policy Period**.

M. REPUTATIONAL HARM LOSS

We will reimburse the **Reputational Harm Loss**, sustained by the **Insured** during the **Indemnity Period**, directly resulting from an **Adverse Publication** concerning a covered **Cyber Event** that first occurred during the **Policy Period** and reported to us in writing during the **Policy Period**.

N. CYBER CRIME

We will reimburse the **Insured** those **Cyber Crime Expenses** directly resulting from a **Cyber Crime Event** first discovered by a **Senior Executive Officer** during the **Policy Period** and reported to us in writing during the **Policy Period**.

SECTION II. DEFINITIONS

- A. **Adverse Publication** means any report or communication to the public through any media channel including, but not limited to television, print media, radio, the internet, or electronic mail, of information that was previously unavailable to the public, specifically concerning a covered **Cyber Event** that affects any of your customers or clients. All **Adverse Publications** relating to the same **Cyber Event** shall be deemed to have occurred on the date of the first **Adverse Publication** for the purposes of determining the applicable **Indemnity Period**.
- B. **Automobile** means a land motor vehicle, trailer or semi-trailer designed for travel on public roads (including any machinery or apparatus attached thereto). **Automobile** also includes vehicles commonly described as mobile equipment, whether or not self-propelled, subject to vehicle registration or designed for use principally off public roads.
- C. **Bodily Injury** means physical injury, sickness, disease or mental anguish including resultant death sustained by any person.
- D. **Business Interruption Loss** means the net income before income taxes which would have been earned, or the net loss before income taxes which would have been avoided, had no interruption or outage of the **Insured's Computer System** occurred, and any reasonable, continuing, and normal operating expenses that were a result of the interruption or outage of the **Insured's Computer System**. This will be calculated in accordance with paragraph 4. of SECTION VIII.

CONDITIONS A. Reporting of Claims, Events and Circumstances.

E. **Claim** means:

1. With respect to SECTION I. INSURING AGREEMENTS A., B., C., D., E., and F., a written demand for money, services, non-monetary relief or injunctive relief; service of **Suit** or arbitration proceedings made against any **Insured**; or a written request to toll or waive the statute of limitations applicable to a **Claim** as previously defined in this paragraph.
2. With respect to SECTION I. INSURING AGREEMENT G. REGULATORY PROCEEDINGS, a **Regulatory Proceeding** instituted against an **Insured**.
3. With respect to SECTION I. INSURING AGREEMENT E. CYBER LIABILITY, **Claim** shall also mean **PCI Violation Fines and Penalties** levied upon an **Insured**.

F. **Claim Expenses** means:

1. As respects a **Claim** covered under SECTION I. INSURING AGREEMENTS A., B., C., E., and F.:
 - a. Reasonable and necessary legal fees, costs and expenses directly resulting from the investigation, adjustment, settlement and defense of a **Claim**; and
 - b. The premiums for appeal, attachment or similar bonds, but only for bond amounts within the applicable Limits of Liability. The Company is not required to furnish these bonds.
2. As respects a covered **Regulatory Proceeding** as detailed in SECTION I. INSURING AGREEMENT G. REGULATORY PROCEEDINGS:
 - a. Reasonable and necessary legal fees, costs and expenses directly resulting from the investigation and defense of a **Regulatory Proceeding**; and
 - b. Reasonable and necessary expenses charged by a vendor designated or approved in writing by us to investigate the **Cyber Event** which directly resulted in the **Regulatory Proceeding**; however, such costs do not include (a) salaries, wages, fees, remuneration, overhead, benefits or expenses of an **Insured**, or (b) costs or expenses incurred to prevent future or subsequent **Cyber Events**.
3. **Claim Expenses** as respects SECTION I. INSURING AGREEMENTS A., B., C., E., F., and G., do not include:
 - a. salaries, wages, fees, remuneration, overhead, benefits or expenses of an **Insured**;
 - b. **Damages**, fines, penalties, fees, or taxes levied or assessed against an **Insured**;
 - c. fees, costs, or expenses incurred by any **Insured** prior to the time that a **Claim** is made or which are paid or incurred without our prior written consent. These unilaterally incurred fees, costs or expenses will not be reimbursed by us and will not reduce any Deductible under the Policy;
 - d. the costs incurred or to be incurred by or on behalf of an **Insured** in connection with the inspection, investigation, withdrawal, alteration, recall, reprocessing, restoration, replacement, retraction, amendment, reprinting, reproduction, remediation, correction, enhancement, upgrading or other modification of audio, visual, digital or informational material;
 - e. the costs of inspecting, investigating, correcting, performing, re-performing, modifying or improving an **Insured's Professional Services** or **Contractor Services**, whether by an **Insured** or another person or entity, when an **Insured** had the opportunity to inspect, investigate, correct, perform, re-perform, modify or improve on the conduct or service that gave rise to the **Claim**;
 - f. the costs and expenses required to comply with any injunctive or other non-monetary equitable, declaratory, regulatory or administrative relief, including specific performance, or any agreement to provide such relief; or
 - g. any **Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, Cyber Crime Expenses**, or costs to implement, upgrade or maintain any security measures of the **Insured's Computer System**.

G. **Clean-Up Costs** means costs, charges and expenses incurred in the investigation, removal or neutralization of a **Pollution Incident**, provided that such **Pollution Incident** arises out of the performance of **Professional Services** or **Contractor Services** by you or on your behalf.

H. **Computer System** means computers and associated hardware, software, or firmware, including network devices, mobile devices and backup components owned, leased, operated or controlled by a **Named Insured** or **Subsidiary**, whether on-site or off-site, and used in the ordinary course of the **Named Insured** or **Subsidiary's** business operations.

I. **Consumer Redress Fund** means **Money** which an **Insured** is legally obligated to deposit in an account as equitable relief for the payment of consumer claims due to an adverse judgment or settlement of a **Regulatory Proceeding**.

Consumer Redress Fund shall not include any amounts which constitute taxes, fines, penalties, injunctive relief, or sanctions.

J. **Contractor Services** means drilling, excavation, or other sampling or testing procedures or construction, remediation or operations necessary to perform **Professional Services** performed by you, your agent, or your subcontractor.

K. **Cryptojacking Loss Event** means the unauthorized use of the **Insured's Computer System** by a third party, resulting from a **Malicious Act**, for the purpose of cryptocurrency mining activities.

L. **Cyber Crime Event** means:

1. a **Funds Transfer Loss Event**;
2. a **Telecommunications Loss Event**;
3. a **Cryptojacking Loss Event**.

M. **Cyber Crime Expenses** means:

1. with respect to any **Funds Transfer Loss Event**:

Cyber Crime Expenses means the monetary value of the **Money** or **Securities** which are lost by the **Named Insured** or **Subsidiary** as a direct result of a **Funds Transfer Loss Event**. **Cyber Crime Expenses** do not include any amounts which can be or have been reimbursed by any financial institution and the monetary value shall be limited to the value of such **Money** or **Securities** at the date and time of the **Funds Transfer Loss Event**. **Cyber Crime Expenses** do not include any costs, fees or fines related to a Securities Violation or SEC Investigation.

2. with respect to any **Telecommunications Loss Event**:

Cyber Crime Expenses means the direct additional toll and line charges incurred by the **Named Insured** or **Subsidiary** as a direct result of a **Telecommunications Loss Event**.

3. with respect to any **Cryptojacking Loss Event**:

Cyber Crime Expenses means the direct additional costs incurred by the **Named Insured** or **Subsidiary** for electricity, natural gas, oil, or internet, in excess of any amounts which the **Named Insured** or **Subsidiary** would have incurred had no **Cryptojacking Loss Event** occurred.

N. **Cyber Event** means:

1. with respect to SECTION I. INSURING AGREEMENTS E., G., and M., a negligent act, error or omission actually or allegedly committed by the **Insured** directly resulting in or based upon a **Cyber Event** as defined by paragraphs 2. – 6. immediately below. If SECTION I. INSURING AGREEMENTS E., G., or M. are triggered, then paragraphs 2. – 6. immediately below apply.
2. with respect to SECTION I. INSURING AGREEMENT H. PRIVACY BREACH EXPENSES, the actual or reasonably suspected:
 - a. failure of the **Insured**, or an independent contractor for whom or for which the **Insured** is responsible, to prevent the theft, accidental release or unintentional and unauthorized disclosure of **Personally Identifiable and Confidential Information**;
 - b. failure of the **Insured**, **Dependent Computer System** or **Non-IT Vendor Computer System** to prevent a **Malicious Act** against the **Insured's Computer System**;
 - c. unintentional violation by an **Insured** of a **Privacy Law**, including the unintentional wrongful collection of **Personally Identifiable and Confidential Information**.
3. with respect to SECTION I. INSURING AGREEMENT I. CYBER EXTORTION, a credible threat or series of related threats directed at an **Insured** to:
 - a. disclose **Personally Identifiable and Confidential Information**;
 - b. corrupt, damage or destroy the **Insured's Computer System**, **Personally Identifiable and Confidential Information**, or **Electronic Data**;
 - c. restrict or hinder access to the **Insured's Computer System**; or
 - d. electronically communicate with the **Insured's** customers and impersonate the **Insured** in order to obtain **Personally Identifiable and Confidential Information**;

and which is accompanied by a demand for compensation from the **Insured** in exchange for the mitigation or removal of such threat or series of related threats.

4. with respect to SECTION I. INSURING AGREEMENT J. ELECTRONIC DATA RESTORATION:
 - a. a **Malicious Act** resulting in **Electronic Data Restoration Expenses**; or
 - b. a **System Failure** resulting in **Electronic Data Restoration Expenses**.
 5. with respect to SECTION I. INSURING AGREEMENT K. BUSINESS INTERRUPTION, a complete or partial interruption or outage of the **Insured's Computer System** caused by:
 - a. a **Malicious Act**;
 - b. an intentional shutdown of the **Insured's Computer System** by an **Insured** with the Company's prior written consent, but only to the extent necessary to limit damage to the **Insured's Computer System** caused by a **Malicious Act** against an **Insured** or **Dependent Computer System**; or
 - c. a **System Failure**.
 6. with respect to SECTION I. INSURING AGREEMENT L. DEPENDENT BUSINESS INTERRUPTION, a complete or partial interruption or outage of a **Dependent Computer System** or a **Non-IT Vendor Computer System** caused by:
 - a. a **Malicious Act**;
 - b. an intentional disconnection from a **Dependent Computer System** or a **Non-IT Vendor Computer System** by an **Insured** with the Company's prior written consent, but only to the extent necessary to limit damage to the **Insured's Computer System** caused by a **Malicious Act** against a **Dependent Computer System** or a **Non-IT Vendor Computer System**; or
 - c. a **System Failure**.
- O. **Cyber Extortion Expenses** means **Money**, digital currency or cryptocurrency (including Bitcoin), or other consideration provided as payment by an **Insured**, with the Company's prior written consent and the cooperation of law enforcement authorities, for the purposes of ending a **Cyber Event** with respect to SECTION I. INSURING AGREEMENT I. CYBER EXTORTION.
- Such expenses do not include salaries, wages, fees, remuneration, overhead, or benefits of an **Insured**; however, the reasonable and necessary expenses incurred by the **Insured** with our prior written consent in order to investigate or end the threat are considered **Cyber Extortion Expenses**.
- P. **Damages** means any monetary and compensatory judgment, award, or settlement, including any award of prejudgment or post-judgment interest, **PCI Violation Fines and Penalties**, **Consumer Redress Fund**, which the **Insured** becomes legally obligated to pay as the direct result of a covered **Claim**. **Damages** shall also include all interest on the full amount of any covered judgment that accrues after entry of the judgment and before we have paid, offered to pay, or have deposited into a court of competent jurisdiction that part of the judgment which is within the remaining applicable Limits of Liability. **Damages** also include **Clean-Up Costs**.

Damages do not include:

1. punitive or exemplary damages, or the multiple portion of any multiplied damages, except to the extent such amounts are insurable under the applicable laws of any jurisdiction that most favors coverage for such punitive or exemplary damages, or the multiple portion of any multiplied damages, and which the **Insured** becomes legally obligated to pay as the direct result of a covered **Claim**;
2. amounts an **Insured** is required to pay or return as restitution;
3. liquidated damages required by written contract or agreement, but only to the extent such liquidated damages exceed the amount for which the **Insured** would have been liable in the absence of such contract, and provided that the **Claim** directly results from an **Incident** or **Cyber Event** first occurring after the **Named Insured** or **Subsidiary** had executed such written contract or agreement;
4. taxes, fines or monetary penalties; or multiples thereof; except **Fines and Penalties** and **PCI Violation Fines and Penalties** otherwise covered by the terms of the Policy;
5. judgments or awards arising from acts deemed uninsurable by law;
6. fees or charges, including over-charges or cost overruns incurred by any **Insured**;
7. the cost of collecting fees of an **Insured** from a third party;
8. the return by an **Insured** of fees or other compensation paid to an **Insured**;
9. non-pecuniary relief or other injunctive relief that does not involve monetary compensation;

10. past, present and future earned and unearned royalties, profits, fees, costs, expenses, commissions, and profits unlawfully or unjustly held or obtained, including the return, offset, disgorgement or restitution of such royalties, profits, fees, costs, expenses, commissions, and profits unlawfully or unjustly held or obtained;
11. the costs of inspecting, investigating, correcting, performing, re-performing, modifying or improving an **Insured's Professional Services**, whether by an **Insured** or another person or entity, when an **Insured** had the opportunity to inspect, investigate, correct, perform, re-perform, modify or improve on the conduct or service that gave rise to the **Claim**;
12. discounts, credits for past or future invoices, prizes, awards, coupons or other incentives offered to an **Insured's** clients or customers;
13. any **Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, Cyber Crime Expenses**, or costs to implement, upgrade or maintain any security measures of the **Insured's Computer System**.

Q. **Dependent Business Interruption Loss** means the net income before income taxes which would have been earned, or the net loss before income taxes which would have been avoided, had no interruption or outage of a **Dependent Computer System** or a **Non-IT Vendor Computer System** occurred, and any reasonable, continuing, and normal operating expenses that were a result of the interruption or outage of a **Dependent Computer System** or a **Non-IT Vendor Computer System**. This will be calculated in accordance with paragraph 4. of SECTION VIII. CONDITIONS A. Reporting of Claims, Events and Circumstances.

R. **Dependent Computer System** means computers and associated hardware, software or firmware, including network devices, mobile devices and backup components owned, leased, operated or controlled by a third party independent contractor that provides processing, maintaining or storing of **Electronic Data** or **Personally Identifiable and Confidential Information** or hosting of computer applications for the **Named Insured** or **Subsidiary** pursuant to a written contract with the **Named Insured** or **Subsidiary**, whether on-site or off-site, which is used in the ordinary course of such third party's business operations. However, **Dependent Computer System** shall not include public utility providers, internet service providers, telecommunications service providers, financial market infrastructure, or **Non-IT Vendor Computer Systems**.

S. **Design Incident** means a negligent act, error, or omission in the preparation of architectural or engineering designs, calculations, drawings, plans, specifications, surveys, or studies. **Design Incident** will not mean any actual or alleged negligence in the review of shop drawings, submittals, or requests for payment, the issuance of change orders, or the observation of construction.

All **Design Incidents** which are logically or causally connected will be deemed one **Design Incident** that, for the purpose of determining coverage under this Policy, shall be deemed to have occurred at the time of the earliest logically or causally connected **Design Incident**.

T. **Design Professional** means any person or entity that is professionally qualified, certified, or licensed and retained by you or on your behalf to perform any **Professional Services**, either in its own capacity or through a subconsultant.

U. **Disciplinary Proceeding** means any inquiry or proceeding by an administrative, regulatory or disciplinary official, board, or agency to investigate, defend or appeal charges of professional misconduct in the performance of or failure to perform **Professional Services**. However, **Disciplinary Proceeding** shall not include a criminal proceeding.

V. **Drone** means any unmanned aircraft system that does not have a natural person pilot onboard, provided that the **Drone**:

1. is duly registered with the Federal Aviation Administration at the time of the **Drone Incident**;
2. weighs 55 pounds or less; and
3. is operated remotely.

W. **Drone Incident** means a negligent act, error, or omission committed by the **Insured** in the rendering of or failure to render **Professional Services**, and which is solely caused by the operation of a **Drone** by the **Insured** or a person acting under the **Insured's** direction, control, or supervision and for whose acts, errors or omissions the **Insured** is legally liable.

All **Drone Incidents** which are logically or causally connected will be deemed one **Drone Incident** that, for the purpose of determining coverage under this Policy, shall be deemed to have occurred at the time of the earliest logically or causally connected **Drone Incident**.

X. **Electronic Data** means intangible electronic property, information, or software stored or utilized by the **Insured's Computer System** in the ordinary course of their business operations; however, it does not include funds, securities, currency or financial instruments of any kind, whether electronic or not.

Y. Electronic Data Restoration Expenses means:

1. the reasonable and necessary costs charged by a vendor designated or approved in writing by us to recover, restore, replace or recreate **Electronic Data** to its condition immediately prior to the **Cyber Event**, but only for such costs that are as a direct result of a covered **Cyber Event**;
2. reasonable and necessary expenses incurred by the **Insured** and approved in writing by us to repair or replace that part of the **Insured's Computer System** that is unable to function as intended due to corruption or destruction of software or firmware directly resulting from a covered **Cyber Event**, provided that repairing or replacing such hardware is more cost effective than the cost to recover, restore, replace or recreate your **Electronic Data**. However, we will only pay the expenses to restore or replace your hardware with identical or commercially equivalent hardware to that which existed immediately prior to the **Cyber Event**; or
3. reasonable and necessary expenses incurred by the **Insured** and approved in writing by us for the use of rented or leased external equipment directly resulting from a covered **Cyber Event**.

Electronic Data Restoration Expenses do not include:

1. any costs attributed to an upgrade or improvement of the **Insured's Computer System** beyond what existed prior to the **Cyber Event**; or
2. salaries, wages, fees, remuneration, overhead, benefits or expenses of any **Insured**.

Z. Emergency Pollution Response Expense means reasonable and necessary expenses incurred by the **Insured**, on an emergency basis, to investigate, test for, contain, mitigate or rectify a **Pollution Incident** resulting from **Contractor Services**. This applies only where such **Pollution Incident** presents an imminent and substantial threat to public health, safety or welfare, or the environment, where the absence of such emergency action being undertaken without delay would result in further harm to third parties or the environment.

AA. Emergency Response means an action taken by you to rectify or remedy a **Design Incident** that prevents imminent **Bodily Injury** and/or **Property Damage** due to that **Design Incident**, and which would reasonably be expected to give rise to a covered **Claim**.

BB. Escrow Account means accounts in the name of the **Named Insured** or **Subsidiary** containing **Money** or **Securities** held on behalf of a client of the **Insured** pursuant to a written contract or agreement executed with such client prior to the occurrence of any **Funds Transfer Loss Event**.

CC. Event means **Cyber Event**, **Cyber Crime Event**.

DD. Extra Expense means:

1. reasonable and necessary costs incurred by the **Insured** in order to verify a **Cyber Event**; these costs may include but are not limited to those costs charged by third party consultants or computer forensic experts;
2. reasonable and necessary costs incurred by the **Insured** in order to continue your **Professional Services**, **Technology Services** and use of **Technology Products** after a **Cyber Event**; however, these costs are only reimbursable if incurred with the Company's prior written consent and do not include any expenses that would not have been incurred in the absence of a **Cyber Event**;
3. other reasonable and necessary costs incurred by the **Insured** in order to mitigate the **Business Interruption Loss** or **Dependent Business Interruption Loss** after a **Cyber Event** has been verified; however, these costs are reimbursable only if incurred with our prior written consent.

EE. Fines and Penalties means civil fines or penalties levied upon the **Insured** by a governmental or industry regulatory body arising from a covered **Regulatory Proceeding**.

Fines and Penalties do not include:

1. matters uninsurable under the law; or
2. any costs incurred to comply with or to fulfill an injunction or non-monetary judgment or order; or
3. any costs incurred to comply with or to fulfill a contractual requirement or mandate.

FF. Funds Transfer Loss Event means:

1. a written, electronic, or telephonic instruction transmitted to a financial institution by an **Insured** as a result of receiving intentional, misleading, or deceptive written, electronic or telephonic communications from a third party that is not an **Insured**, your client or your vendor, falsely representing themselves to be the **Insured**, your client or your vendor, and which directs the financial institution to debit and transfer, pay or deliver **Money** or **Securities** out of the account of a **Named Insured** or **Subsidiary** or an **Escrow Account**;

2. a written, electronic, or telephonic instruction transmitted to a financial institution by a third party, that is not an **Insured**, falsely representing themselves to be the **Insured**, and which directs the financial institution to debit and transfer, pay or deliver **Money** or **Securities** out of the account of a **Named Insured** or **Subsidiary** or an **Escrow Account**; or
3. a fraudulent electronic transfer of **Money** or **Securities** out of the account of a **Named Insured** or **Subsidiary** or an **Escrow Account**, which is initiated by a third party that is not an **Insured**, as a direct result of a **Malicious Act**.

GG. **Incident** means **Professional Incident**, **Pollution Incident**, **Drone Incident**, **Design Incident**, and **Media Incident**.

HH. **Indemnity Period** means the period of time which begins when the number of hours as stated on the Declarations under **Indemnity Period** has elapsed immediately following the date and time that the **Cyber Event** first occurs and ending no later than the number of days, as stated on the Declarations under **Indemnity Period**, thereafter.

II. **Insured** means:

1. the **Named Insured**;
2. your current and former principals, partners, executive officers, directors, members, managers, stockholders, trustees, and current and former employees while acting on your behalf within the course and scope of their duties as such;
3. in the event of death or incapacity of any **Insured**, their legal representative in his or her capacity as such, for any **Claim** against the **Insured**;
4. leased personnel under your supervision, but only while acting on your behalf within the course and scope of their lease agreement and only if the **Named Insured** has agreed in writing to provide insurance to leased personnel;
5. a temporary worker under your supervision, who is furnished to you to substitute for a permanent employee on leave or to meet seasonal or short-term workload conditions;
6. any **Subsidiary** of the **Named Insured**, but only with respect to **Incidents** and **Events** which occur while it is a **Subsidiary** of the **Named Insured**;
7. the **Named Insured** or **Subsidiary** with respect to their participation in a joint venture pursuant to a written joint venture agreement, but only to the extent of the **Named Insured's** or **Subsidiary's** proportional share of liability as specified in such agreement. This coverage applies solely to that portion of liability arising directly from an **Incident** committed by the **Named Insured** or **Subsidiary**, and only to an **Incident** which occurs during the period in which the **Named Insured** or **Subsidiary** is a legally part of such joint venture.
8. a retired partner, principal, officer, director, member or employee of the **Named Insured**, while acting within the scope of their duties as a consultant for the **Named Insured**;
9. your lawful spouse or legally recognized domestic partner solely by reason of their legal status, or their ownership interest in property or assets that are sought as recovery. This shall not apply to the extent a **Claim** alleges any **Incident** or **Event** by such spouse or legally recognized domestic partner who does not otherwise qualify as an **Insured**.

JJ. **Intellectual Property** means property that is created through the intellectual efforts of its creator which is claimed to be protected by law.

KK. **License Defense Hearing** means a formal administrative proceeding or series of proceedings, including any investigation or investigations related thereto, conducted by a State Board of Architects, State Board of Professional Engineers and Land Surveyors, or equivalent, in which the sole subject is the restriction, suspension or revocation of the **Insured's** professional license. A series of related proceedings arising out of the same allegations, and before the same administrative body, shall constitute one **License Defense Hearing**.

LL. **Malicious Act** means:

1. unauthorized access to or unauthorized use of a **Computer System** or **Dependent Computer System**; or
2. the fraudulent and unauthorized corruption, destruction, damage, theft or deletion of **Electronic Data**; or
3. the transmittal or distribution of **Malicious Code** to a **Computer System** or **Dependent Computer System**.

MM. **Malicious Code** means an unauthorized, unwanted or harmful program, code or script, including, but not limited to, viruses, trojan horses, worms, time or logic bombs, spyware, malware, spiderware, ransomware, denial of service attacks or other electronic infections.

NN. **Media** means printed, audio, visual, digital or informational material, including software code, content of websites owned and operated by the **Insured** and that portion of content on websites not owned by the **Insured** promoting the **Insured** and its **Professional Services**, but does not include published books or periodical publications.

- OO. **Mediation** means the voluntary and nonbinding process by which the **Insured** and claimant(s) agree to use a neutral and qualified third party to intercede between the **Insured** and claimant(s) with the intention to reconcile the **Insured** and claimant(s) to resolve a **Claim**. Court ordered or imposed mediation or other court ordered dispute resolution are specifically excluded from this definition.
- PP. **Media Incident** means any of the following actual or alleged unintentional and unknowing conduct directly relating to, in connection with or arising out of the publication, transmission, display, broadcast, web cast, dissemination, distribution or release of **Media**, by the **Insured** or on behalf of the **Insured**, for the benefit of promoting the **Insured** and its **Professional Services**:
1. dilution or infringement of copyright, title, slogan, trademark, trade name, trade dress, service mark or service name;
 2. libel, slander or defamation;
 3. disparagement of another's goods, products or services;
 4. plagiarism or misappropriation of advertising ideas;
 5. piracy or unfair competition;
 6. wrongful entry, wrongful eviction, or other invasion or infringement of an individual's right to privacy or publicity;
 7. false arrest, detention, or imprisonment; or
 8. malicious prosecution.
- All **Media Incidents** which are logically or causally connected will be deemed one **Media Incident** that, for the purpose of determining coverage under this Policy, shall be deemed to have occurred at the time of the earliest logically or causally connected **Media Incident**.
- QQ. **Merchant Services Agreement** means an agreement between an **Insured** and a financial institution, credit card company, credit card processor or any third party that provides services to the **Insured** that enable the **Insured** to accept payments and donations made by credit card, debit card or pre-paid payment card.
- RR. **Money** means a medium of exchange in current use and authorized or adopted by a domestic or foreign government, including currency, coins, bank notes, bullion, traveler's checks, registered checks, and money orders held for sale to the public. **Money** does not include cryptocurrency.
- SS. **Named Insured** means the entity or individual named in the Declarations.
- TT. **Non-IT Vendor Computer System** means computers and associated hardware, software or firmware, including network devices, mobile devices and backup components owned, leased, operated or controlled by a third party independent contractor that provides products or services to the **Named Insured** or **Subsidiary** pursuant to a written contract with the **Named Insured** or **Subsidiary**, whether on-site or off-site, which is used in the ordinary course of such third party's business operations. However, **Non-IT Vendor Computer System** shall not mean public utility providers, internet service providers, telecommunications service providers, financial market infrastructure, or **Dependent Computer Systems**.
- UU. **Other Insurance** includes, but is not limited to, coverage or benefits available to an **Insured** pursuant to any insurance policy, self-insurance arrangements, pools, self-insurance trusts, captive insurance companies, inter-insurance exchanges, mutual insurance companies, stock insurance companies, risk retention groups, reciprocal exchanges, mutual benefit or assistance programs, or any other plan or agreement of risk assumption. This definition applies regardless of whether applicable law would consider such coverage or benefits to be **Other Insurance**.
- VV. **PCI Violation Fines and Penalties** means those amounts the **Insured** becomes legally obligated to pay as assessments, monetary fines, reimbursements, mandatory audit fees or fraud recoveries under the terms of a **Merchant Services Agreement** as a direct result of a violation of the Payment Card Industry Data Security Standard due to a **Cyber Event**. **PCI Violation Fines and Penalties** do not include any of the following:
1. chargebacks, chargeback fees, interchange fees, transaction fees, discount fees, merchant service fees, or prospective service fees, including any related fees, expenses or costs paid to or charged by an **Insured**;
 2. monetary amounts that do not result directly from a **Cyber Event**.
- WW. **Personally Identifiable and Confidential Information** means:
1. private, personal non-public information concerning a natural person that is protected from unauthorized dissemination by a **Privacy Law**; or

2. information of a third party held by an **Insured** that is subject to a written confidentiality agreement or confidentiality provision of a written contract between the **Named Insured** or **Subsidiary** and the third party owner of the information;

regardless of its format and that has been stored or otherwise maintained by an **Insured**, a **Dependent Computer System** or a **Non-IT Vendor Computer System** acting at the direction of the **Named Insured** or **Subsidiary**. This does not include records that are lawfully available to the general public for any reason, including but not limited to information from federal, state or local government records.

XX. **Policy Period** means the period from the inception date stated in the Declarations to the expiration date stated in the Declarations, or its earlier termination date, if any.

YY. **Policy Territory** means anywhere in the universe except countries or states against which the United States has implemented trade or diplomatic sanctions.

ZZ. **Pollutants** means any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, toxic chemicals, mold, mildew, spores, fungi, microbes, bacteria, legionella pneumophila, asbestos, lead, silica, silt, sediment, liquids, gases, organic or inorganic pollutants, electromagnetic fields, hazardous substances, hazardous materials and waste materials, including medical, infectious, and pathological wastes. Waste includes materials to be recycled, reconditioned or reclaimed. Radioactive matter shall also be considered a pollutant, except as otherwise covered or protected by insurance or protections provided pursuant to 42 U.S.C. § 2014(w), as amended, or Section 170 of the Atomic Energy Act of 1954, as amended.

Pollutants does not mean:

1. heat, smoke, vapor, soot or fumes from a hostile fire or explosion;
2. virus;
3. infectious disease.

AAA. **Pollution Incident** means the actual or alleged discharge, dispersal, seepage, migration, growth, release or escape of **Pollutants** into or upon land, any structure on land, the atmosphere or any watercourse or body of water, including groundwater, which results in **Bodily Injury** or **Property Damage**.

The **Pollution Incident** must result from the rendering of or failure to render **Professional Services** or **Contractor Services** by the **Insured** or a person acting under the **Insured's** direction, control or supervision and for whose acts, errors or omissions the **Insured** is legally liable.

Pollution Incident does not include transportation, shipment, delivery or disposal of **Pollutants**, contaminants, waste, products or materials.

All **Pollution Incidents** which are logically or causally connected will be deemed one **Pollution Incident** that, for the purpose of determining coverage under this Policy, shall be deemed to have occurred at the time of the earliest logically or causally connected **Pollution Incident**.

BBB. **Privacy Breach Expenses** mean the following reasonable and necessary expenses incurred by the **Insured** or for the **Insured**, which are required in order for the **Insured** to comply with applicable **Privacy Laws** or to minimize potential **Damages** which may otherwise be covered under this Policy:

1. Forensic Expenses

Expenses charged by a vendor designated or approved by us to perform computer forensics to determine the existence, cause and scope of a **Cyber Event**.

2. Cyber Investigation Expense

Expenses charged by a law firm or vendor designated or approved in writing by us to investigate a **Cyber Event** in order to determine whether the **Insured** has an obligation to provide notice under **Privacy Law**. Such costs do not include (a) salaries, wages, fees, remuneration, overhead, benefits or expenses of an **Insured**, or (b) costs or expenses incurred to prevent future or subsequent **Cyber Events**.

Cyber Investigation Expense does not mean the costs or expenses charged or incurred to restore, replace, remediate, repair, correct, enhance, upgrade or otherwise modify, improve or make changes to the **Insured's Computer System** following, or as a result of, an actual or attempted **Cyber Event**.

3. Notification Expense

Expenses charged by a vendor designated or approved in writing by us to notify an individual person of the release of **Personally Identifiable and Confidential Information** as a result of a **Cyber Event**, including the reasonable and necessary expenses approved in writing by us to voluntarily notify individuals of such where not required by law.

4. Credit Monitoring Expense

Expenses charged by a vendor designated or approved in writing by us to provide credit monitoring services to an individual person affected by a **Cyber Event** and for a period of 24 months from the date of enrollment in such credit monitoring services or as long as necessary to comply with the applicable **Privacy Law**, whichever is longer.

5. Identity Theft Restoration Expenses

Expenses charged by a vendor designated or approved by us to provide credit, identity or medical restoration services for those individuals whose **Personally Identifiable and Confidential Information** was or may have been breached as the result of a **Cyber Event**.

6. Crisis Management Expense

Expenses charged by a public relations firm, law firm or crisis management firm designated or approved in writing by us to perform crisis management services in order to minimize potential **Damages** resulting from a **Cyber Event**.

7. Call Center and Translation Expenses

Expenses charged by a third party call center, designated or approved in writing by us, to answer the questions of individuals affected by a **Cyber Event** and shall include necessary translation services to manage communications with such individuals affected by a **Cyber Event**.

8. Legal Expenses

Expenses charged by attorneys designated or approved in writing by us, in order to determine the **Insured's** indemnification rights under a written contract with any independent contractor, third party vendor, **Dependent Computer System** or **Non-IT Vendor Computer System** that may be legally responsible for the **Cyber Event**.

9. PCI Forensics and Expenses

Expenses charged by a law firm or vendor designated or approved in writing by us to determine the **Insured's** responsibilities under the terms of a **Merchant Services Agreement** as a direct result of a violation or suspected violation of the Payment Card Industry Data Security Standard due to a **Cyber Event**. PCI Forensics and Expenses shall not include **PCI Violation Fines and Penalties**.

CCC. **Privacy Law** means statutes pertaining to the protection and collection of non-public personally identifiable information as defined in those statutes.

DDD. **Professional Incident** means a negligent act, error, or omission in the rendering of or failure to render **Professional Services** by the **Insured** or a person acting under the **Insured's** direction, control, or supervision and for whose acts, errors or omissions the **Insured** is legally liable.

All **Professional Incidents** which are logically or causally connected will be deemed one **Professional Incident** that, for the purpose of determining coverage under this Policy, shall be deemed to have occurred at the time of the earliest logically or causally connected **Professional Incidents**.

EEE. **Professional Services** means:

1. services performed by an **Insured** for others involving specialized training, knowledge, and skill while in pursuit of the profession or services as described in the Declarations page of this Policy;
2. **Technology Services** and **Technology Products** utilized in the performance of the **Professional Services** described above;
3. **Professional Services** with respect to Building Information Modeling (BIM) systems including but not limited to modification, alteration, transfer, protection, manipulation, use, or misuse thereof, or design assist system or program, and the foregoing within Integrated Project Delivery (IPD), Public-Private Partnership projects (P3s), or Lean Project Delivery System (LPDS).

Professional Services also include the above services performed pro-bono by any **Insured** with prior knowledge and written consent of the **Named Insured**.

FFF. **Property Damage** means:

1. physical injury to or destruction of tangible property, including all resulting loss of use of that property; or
2. loss of use of tangible property that has not been physically injured or destroyed.

GGG. **Rectification Expenses** means reasonable and necessary fees or direct costs incurred by the **Insured** to rectify or remedy a **Design Incident** that would reasonably be expected to give rise to a covered **Claim**. Pursuant to paragraph 5. of SECTION VIII. CONDITIONS A. Reporting of Claims, Events and Circumstances, we must provide our express written consent for such **Rectification Expenses**, except in the event of an **Emergency Response**.

HHH. **Regulatory Proceeding** means a formal request to the **Insured** by a regulatory body or regulator for documentation, participation in, investigation or a civil proceeding directly arising from the **Insured's** actual or alleged violation of any **Privacy Law**.

III. **Related Claims** means **Claims** based upon, arising from, in consequence of, directly or indirectly resulting from, or involving in any way continuous, repeated, the same, related, or substantially similar, or logically or causally connected facts, circumstances, subjects, situations, decisions, causes, persons, transactions, events, classes of persons or events, or a continuous, repeated, the same, related, or a substantially similar or logically or causally connected series of facts, circumstances, subjects, situations, decisions, persons, transactions, class of persons or events.

JJJ. **Related Events** means **Cyber Events** or **Cyber Crime Events** based upon, arising from, in consequence of, directly or indirectly resulting from, or involving in any way continuous, repeated, the same, related, or substantially similar or logically or causally connected facts, circumstances, subjects, situations, decisions, causes, persons, transactions, events, classes of persons or events, or a continuous, repeated, the same, related, or a substantially similar or logically or causally connected series of facts, circumstances, subjects, situations, decisions, persons, transactions, class of persons or events.

KKK. **Reputational Harm Loss** means the net income before income taxes which would have been earned, or the net loss before income taxes which would have been avoided, had no **Cyber Event** occurred, and which results solely and directly from any **Adverse Publication**. This will be calculated in accordance with paragraph 4. of SECTION VIII. CONDITIONS A. Reporting of Claims, Events and Circumstances.

Reputational Harm Loss shall not include any:

1. costs to rehabilitate your reputation, including legal costs or expenses;
2. **Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss or Cyber Crime Expenses;**
3. costs directly caused by an **Adverse Publication** of any occurrence other than a covered **Cyber Event**.

LLL. **Securities** means written negotiable or non-negotiable instruments or contracts representing **Money**, or uncertified securities, but **Securities** does not include **Money**.

MMM. **Senior Executive Officer** means the current or former Chief Executive Officer, Chief Financial Officer, Chief Information Security Officer, Chief Technology Officer, in-house lawyers, or risk manager, or any individual in the functional equivalent of such positions for the **Named Insured** or any **Subsidiary**.

NNN. **Subsidiary** means:

1. Any entity listed on the **Named Insured's** Application for this Policy and in which the **Named Insured**, as of the effective date of the Policy, either directly or indirectly owns more than fifty percent (50%) of the issued and outstanding voting equity securities or controls voting rights representing the present right to vote for election or to appoint more than fifty percent (50%) of the directors or trustees; and
2. Any entity newly formed or acquired by the **Named Insured** during the **Policy Period** in which the **Named Insured** has more than 50% of the legal or ownership interest, but only if all of the following conditions are met:
 - a. within 90 days of such formation or acquisition, the **Named Insured** has provided the Company with full particulars of the details of such merger or acquisition, and the Company has agreed in writing to insure such new **Subsidiary**, but the Company shall not be required to insure such new **Subsidiary**; and
 - b. the **Named Insured** has agreed in writing to any changes in terms and conditions of this Policy related to the new **Subsidiary** and paid any additional premium, if any, charged by the Company.

OOO. **Suit** means a civil proceeding in which **Damages** or entitlement to equitable relief, resulting from an **Incident** or **Cyber Event**, are alleged. **Suit** includes an arbitration proceeding to which the **Insured** is required to submit or to which the **Insured** has submitted with our written consent.

PPP. **System Failure** means:

1. with respect to SECTION I. INSURING AGREEMENT J. ELECTRONIC DATA RESTORATION, an unintentional and unplanned interruption of the **Insured's Computer System**, a **Dependent Computer System** or a **Non-IT Vendor Computer System**, and which was not caused by a **Malicious Act**;
2. with respect to SECTION I. INSURING AGREEMENT K. BUSINESS INTERRUPTION, an unintentional and unplanned interruption of the **Insured's Computer System**, and which was not caused by a **Malicious Act**.
3. with respect to SECTION I. INSURING AGREEMENT L. DEPENDENT BUSINESS INTERRUPTION, an unintentional and unplanned interruption of a **Dependent Computer System** or a **Non-IT Vendor Computer System**, and which was not caused by a **Malicious Act**.

QQQ. **Technology Products** means:

1. Software developed, sold or licensed to others by the **Insured** for use in connection with the **Insured's Professional Services**, and that are sold or provided by the **Insured** at the time such **Professional Services** were delivered to a third party for compensation; and
2. Computer and Telecommunications hardware, firmware, or any related electronic product or equipment specifically created by or intended for use in connection with the **Insured's Professional Services**, and that are sold or provided by the **Insured** at the time such **Professional Services** were delivered to a third party for compensation; however, this does not include any of the above mentioned if those products have been recalled by the **Named Insured**.

Technology Products shall not include **Drones**.

RRR. **Technology Services** means any of the following services performed by or on behalf of the **Named Insured** for others for compensation:

1. Computer hardware or electronic component design, integration, maintenance, repair or support;
2. Computer firmware or software design, development, integration and support;
3. Computer system design, integration and analysis;
4. Information technology consulting, staff augmentation, or outsourcing;
5. Network hosting, management, security, or security outsourcing;
6. Records management or storage services, data processing services, search engine optimization and related services, value added reselling of computer hardware or software, or web portal services;
7. Web site design or hosting;
8. Application Service Provider (ASP) or Internet service provider (ISP);
9. Software as a Service (SaaS), Platform as a Service (PaaS), or Infrastructure as a Service (IaaS);
10. Artificial Intelligence, Generative Artificial Intelligence and Machine Learning computer software, firmware or hardware design, development, integration and support; or
11. Training involving any of the above.

SSS. **Telecommunications Loss Event** means a third party's intentional, unauthorized and fraudulent use of the **Insured's Telephone System**.

TTT. **Telephone System** means a telephone or fax system that the **Named Insured** or **Subsidiary** owns, rents, leases or licenses.

SECTION III. EXCLUSIONS

We shall not be liable to defend, pay, indemnify or reimburse the **Insured** with respect to any **Claim**, **Event** or **Suit** based upon, resulting from, arising out of, in consequence of, or in any way in connection with or involving, directly or indirectly:

A. **Insured vs. Insured**

Against an **Insured** that is brought by or on behalf of:

1. any other **Insured**; however, this exclusion shall not apply to an otherwise covered **Claim** by a past or present **Insured** alleging a **Cyber Event**, but only if such past or present **Insured** did not commit, participate in or contribute to such **Cyber Event**;
2. any entity which is owned or controlled by, or is under common ownership or control with, the **Insured**; however, this shall only apply to entities the **Insured** has more than a 20% ownership interest in;

3. any person, entity, director, officer, partner or shareholder which owns or controls more than 20% of any entity included within the definition of **Insured**.

B. Intentional Acts

1. Any actual or alleged dishonest, fraudulent, criminal, malicious or intentional act, error, or omission by an **Insured**. However, this exclusion does not apply to **Claim Expenses** incurred in defending any such **Claim** until such time as there is a final adjudication, judgment, binding arbitration or conviction of any **Insured**, or an admission of such conduct by the **Insured**, establishing such wrongful, criminal, dishonest, fraudulent or malicious conduct, or a plea of nolo contendere or no contest regarding such conduct, at which time the **Named Insured** shall reimburse us for all **Claim Expenses** incurred defending the **Claim** and we shall thereafter have no further liability for **Claim Expenses**. This exclusion does not apply to any liability of the **Named Insured** or any **Insured** that did not personally participate in or personally commit the dishonest, fraudulent, criminal, malicious or intentional act, error, or omission if coverage would otherwise be afforded by this Policy for the resulting **Damages**;
2. The execution, creation, or commission, by the **Insured**, of a **Malicious Act** which limits or prevents the use of the **Insured's Computer System** or any third party's computer system or network; however, this exclusion does not apply to **Claim Expenses** incurred in defending any such **Claim** until such time as there is a final adjudication, judgment, binding arbitration, decision or conviction of any **Insured**, or an admission of such conduct by the **Insured**. This exclusion does not apply to those **Insureds** who did not intentionally and knowingly commit, acquiesce or participate in this conduct.

C. Auto, Marine, Aviation

The ownership, maintenance, use, loading, unloading, or entrustment to others, including the loaning thereof, of:

1. any airplane, helicopter or aircraft;
2. any **Automobile**, motorcycle, moped, truck, three-wheeler, snowmobile or other motor vehicle of whatever type or nature, whether designed for travel on or off public roads; or
3. any motor or sail boats or other watercraft, of whatever type or nature owned, operated, rented by or loaned to any **Insured**.

However, this exclusion shall not apply to an otherwise covered **Drone Incident**.

D. Insolvency

The insolvency or bankruptcy of any **Insured** or any person, firm or organization.

E. Discrimination

1. Any actual or alleged unlawful discrimination of any kind, including but not limited to, discrimination based on race, creed, religion, ethnic background, national origin, age, handicap, sex, sexual orientation, gender identification, genetic information, marital status or financial condition;
2. Any actual or alleged wrongful employment practice including but not limited to any refusal to employ, termination of employment, employment policies or procedures, coercion, demotion, evaluation, retaliation, reassignment, discipline, defamation, harassment, humiliation, failure to promote, wrongful disciplinary action, deprivation of career opportunity, inadequate workplace, whistle-blowing, and labor disputes for any reason.

F. Sexual Abuse

Any actual or alleged sexual abuse, sexual molestation, sexual harassment, sexual advances, sexual misconduct or maltreatment of a sexual or physical nature, or any behavior or communications intended to lead to or culminating in sexual abuse, sexual molestation, sexual advances or sexual misconduct.

G. Worker's Compensation

Any actual or alleged liability under any Workers' Compensation, Unemployment Compensation, Disability Benefits Law, the Employee Retirement Income Security Act of 1974 and as amended, FELA, or any similar federal, state, local or foreign legislation, regulation or law, or to any liability of the **Insured** arising out of the injury, sickness, disease or death resulting therefrom of any employee of any **Insured** arising out of and in the course of his employment by the **Insured**.

H. Nuclear

Any nuclear reaction, nuclear radiation, radioactive contamination, radioactive substance, electromagnetic field, electromagnetic radiation, or electromagnetism.

I. False Advertisement

Any actual or alleged false, misleading, deceptive or fraudulent description, representation or promotion of the products, services or business of the **Insured**.

J. Patent

Any actual or alleged patent infringement or theft, copying, misappropriation, display or publication of any patent.

K. Trade Secret

Any actual or alleged misappropriation, theft, copying, display, publication, or broadcast of any trade secret by any **Insured**, or with the knowledge, assistance, participation or cooperation of any **Insured**.

L. Contractual Liability and Warranties

1. Any actual or alleged breach of contract, warranty, guarantee or promise; however, this exclusion shall not apply to:
 - a. any liability the **Insured** would have had in the absence of such contract;
 - b. the portion of any such contract related specifically to the safeguarding of **Personally Identifiable and Confidential Information**, if such contract was executed prior to the date of the actual or alleged breach of contract;
 - c. the **Insured's** unintentional breach of a contract as a result of an otherwise covered **Claim** or **Event**; or
 - d. any guarantee that the **Insured's Professional Services** comply with the generally accepted professional standard applicable to the **Insured's Professional Services**.
2. Any liability of others assumed by the **Insured** under any contract or agreement, either oral or written, including the defense, indemnification or reimbursement of others assumed by the **Insured** under contract; however, this exclusion shall not apply to any liability the **Insured** would have had in the absence of such contract.

M. Governmental Actions

1. Any federal, state, local or foreign administrative, governmental, or regulatory agency, tribunal, body or similar or equivalent entity; however, this exclusion shall not apply:
 - a. where a **Claim** is brought by any of these entities, if such entity is also a client and the **Claim** arises from an actual or alleged **Incident** or **Cyber Event** based on, resulting from, arising out of, in consequence of, or in any way in connection with or involving, directly or indirectly the parties' business relationship; or
 - b. in the event of a covered **Regulatory Proceeding** or **Disciplinary Proceeding**.
2. Any trade or licensing agency, body, entity, society, tribunal or similar or equivalent entity; however, this exclusion shall not apply to coverage otherwise afforded in SECTION VI. SUPPLEMENTARY PAYMENTS, B., C. and D.

N. Cost Guarantees

Any allegation that an **Insured** exceeded a contract price, cost guarantee or cost estimate.

O. Fee Dispute

Any fee disputes; however, this exclusion does not apply to a **Claim** arising out of a **Professional Incident**.

P. Product Liability

Any **Claim** based upon or arising out of, in whole or in part, directly or indirectly, the deficiency or malfunction of any product or equipment (including any parts, components, assemblies) which is sold, manufactured or furnished by or on behalf of the **Insured**; however, this exclusion shall not apply to:

1. a **Claim** arising out of a **Professional Incident**; or
2. goods or products installed or incorporated into your project where such goods or products were specifically designed by you or on your behalf by a **Design Professional** for use with a specific project.

Q. Prior Knowledge

1. Any actual or alleged **Claim, Event, Incident**, fact, circumstance, subject, decision, transaction, situation or cause which has been reported, noticed or identified to any other insurance carrier, third party administrator or claims handler under any other insurance policy, application or agreement;
2. Any **Claim, Event, Incident**, fact, circumstance, subject, decision, transaction, situation or cause of which the person signing the Application for this Policy or any of the **Insured's Senior Executive Officers** was aware prior to the effective date of this Policy or any other Policy issued by us if such **Claim, Event, Incident**, fact, circumstance, subject, decision, transaction, event, situation or cause could reasonably have been expected to give rise to a **Claim** or **Event**;

3. Any prior or pending litigation, **Claim, Event, Incident**, fact, circumstance, subject, decision, transaction, situation, cause, proceeding or investigation made, presented, transmitted, filed or commenced on or before the effective date of this Policy, or alleging or derived from the same, substantially similar or logically or causally connected litigation, **Claim, Event, Incident**, fact, circumstance, subject, decision, transaction, situation, cause, proceeding or investigation underlying or alleged therein.
- R. Construction Workmanship
Any construction, demolition, erection, excavation or the assembly or installation of components or equipment; however, this exclusion does not apply to a **Claim** arising out of a **Professional Incident**.
- S. Failure to Maintain Insurance
Any actual or alleged failure to provide, obtain or maintain any form of insurance, surety or bond, or to advise or require others to do so.
- T. Unsolicited Communications
The unsolicited dissemination of any communication to actual or prospective customers of the **Insured** or any third party, including, but not limited to, actions brought under the Telephone Consumer Protection Act, the CAN-SPAM Act, or any other federal, state or local legislation, regulation or law protecting a person's or entity's right of seclusion or privacy; however, this exclusion does not apply to **Cyber Events** covered under SECTION I. INSURING AGREEMENT E. CYBER LIABILITY.
- U. Cross Policy
Any project for which you are an insured under any other professional liability policy issued for any specific client(s) or specific project(s).
- V. Sanctions
Any actual or alleged violation of any United States economic or trade sanction, including but not limited to, sanctions administered by The United States Treasury Department's Office of Foreign Assets Control (OFAC).
- W. Hostile Acts
Any war, invasion, acts of foreign enemies, hostilities (whether war is declared or not), rebellion, revolution, insurrection, mutiny, civil war, war-like action, coup, usurped powers or military power; however, this exclusion shall not apply to **Cyber Terrorism** which results in a **Claim** or **Event**. **Cyber Terrorism** means any act, including force or violence, or the threat thereof expressly directed against the **Insured's Computer System** or **Dependent Computer System**, which is made by an individual or a group of individuals, whether acting alone or on behalf of, or in connection with any organization or government, to cause unauthorized access to, unauthorized use of, or targeted denial of service attack or transmission of unauthorized, corrupting or harmful software code to the **Insured's Computer System** or **Dependent Computer System**, for the purpose of furthering social, ideological, religious, economic or policy objectives, intimidating or coercing a government or the civilian population thereof, or disrupting any segment of the economy.
- X. Consumer Protection Laws
Any actual or alleged violation by an **Insured** of any consumer protection statute including but not limited to: Truth in Lending Act, Fair Debt Collection Practices Act, the Fair Credit Reporting Act, Fair and Accurate Credit Transactions Act or any amendments thereto or any rules or regulations promulgated thereunder. However, solely with respect to SECTION I. INSURING AGREEMENT E. CYBER LIABILITY, this exclusion shall not apply to a **Claim** arising out of the actual or alleged disclosure or theft of **Personally Identifiable and Confidential Information** resulting from a **Cyber Event**.
- Y. Game of Chance and Over-Redemption
Any promotional games, gambling, lottery, contests, campaigns or other games of chance, including the value of discounts, prizes, awards, coupons or other incentives offered to the **Insured's** clients or customers and the over-redemption thereof. However, this exclusion shall not apply to an otherwise covered **Cyber Event**.
- Z. Bodily Injury and Property Damage
Solely as respects SECTION I. INSURING AGREEMENTS E., G., H., I., J., K., L., M., and N., any actual or alleged:
1. **Bodily Injury**; however, this exclusion does not apply to **Bodily Injury** sustained by a natural person as a direct result of a **Cyber Event** covered under SECTION I. INSURING AGREEMENT E. CYBER LIABILITY.
 2. **Property Damage**; however, this exclusion does not apply to **Electronic Data Restoration Expenses** directly arising out of a **Cyber Event** covered under SECTION I. INSURING AGREEMENT J. ELECTRONIC DATA RESTORATION.

AA. Mechanical Failure

Solely as respects SECTION I. INSURING AGREEMENTS E., G., H., I., J., K., L., M., and N., any electrical, or mechanical failures, including power interruption, surge, brownout or blackout, or defect of telephone, telecommunications, or data transmission lines, services, equipment or infrastructure.

BB. Government Enforcement

Solely as respects SECTION I. INSURING AGREEMENTS E., G., H., I., J., K., L., M., and N., any seizure, nationalization, confiscation, destruction, deletion or other malicious or harmful conduct, action or inaction by or on behalf of or in the name or right of any local, state, federal, or foreign administrative, governmental, quasi-governmental, regulatory or governmentally approved agency, tribunal, body, person or similar or equivalent entity of any **Personally Identifiable and Confidential Information** or computer, hardware, software or electronic system held or used by the **Insured**.

CC. Unauthorized Data Collection

Any unlawful, unauthorized or undisclosed obtaining, gathering, collecting, acquiring, using, distribution or sale of any information of any type, nature or kind by an **Insured**, including but not limited to **Personally Identifiable and Confidential Information**; however, this exclusion does not apply to any **Insured** who did not intentionally and knowingly commit, acquiesce or participate in this conduct or in the absence of a final judgment, adjudication or binding arbitration ruling adverse to such **Insured**.

DD. Securities Violation

Any actual or alleged violation of any federal, state, local or foreign securities-related legislation, regulation or law. However, this exclusion does not apply as respects a covered **Funds Transfer Loss Event**.

EE. Misrepresentation

Solely as respects SECTION I. INSURING AGREEMENT F. MEDIA LIABILITY, any actual or alleged inadequate or incomplete description of the price of goods, products or services.

FF. Royalties

Solely as respects SECTION I. INSURING AGREEMENT F. MEDIA LIABILITY, any actual or alleged failure to make licensing fee or royalty payments.

GG. Reprint or Recall

1. Any costs or expenses incurred by the **Insured** or others on behalf of the **Insured**, to inspect, investigate, withdraw, alter, recall, reprocess, restore, replace, retract, amend, reprint, reproduce, remediate, correct, enhance, upgrade or otherwise modify any **Technology Service** or **Technology Product** of an **Insured**, or any part of any such **Technology Service** or **Technology Product** unless such costs or expenses are incurred as a result of a covered **Cyber Event**. Furthermore, solely with respect to SECTION I. INSURING AGREEMENT A. ARCHITECTS AND ENGINEERS PROFESSIONAL LIABILITY, this exclusion shall not apply to that part of any **Claim** for **Damages** and **Claim Expenses** arising from the loss of use of **Technology Services** or **Technology Products**.
2. Solely as respects SECTION I. INSURING AGREEMENT F. MEDIA LIABILITY, any costs or expenses incurred in the reprinting, recall, or disposal of any **Media** including any content or products containing **Media** created by any **Insured**.

HH. Licensing Agencies

Solely as respects SECTION I. INSURING AGREEMENT F. MEDIA LIABILITY, the Federal Trade Commission, the Federal Communications Commission or similar governmental entity in such entity's regulatory or official capacity.

SECTION IV. THE COMPANY'S RIGHTS AND DUTIES

1. We have the right and duty to defend and pay on behalf of the **Insured** any **Claim Expenses** directly resulting from any covered **Claim** to which this insurance applies and will do so even if the allegations of the **Claim** are groundless, false or fraudulent. The **Insured** may recommend counsel whom it wishes to defend any covered **Claim**; however, we retain the right to ultimately appoint counsel of our choosing to defend the **Insured**. Our duty ends when we have used up the Policy's applicable Limit of Liability in the payment of **Damages** and/or **Claim Expenses** or have deposited the Policy's remaining applicable Limit of Liability with a court of competent jurisdiction. We have no obligation or duty to defend any **Claim** for which coverage is excluded or not otherwise afforded by the Policy and we are not obligated to pay any **Claim Expenses** incurred by the **Insured** in the defense of any **Claim** excluded or otherwise not covered by the Policy.
2. We have the right and duty to pay on behalf of the **Insured** any **Fines and Penalties**, **Rectification Expenses**, **Privacy Breach Expenses** or **Electronic Data Restoration Expenses** and to reimburse the **Insured** for any **Cyber Extortion**

Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, or Cyber Crime Expenses to which this insurance applies that directly result from a covered **Design Incident** or **Event**. Our duty ends when we have used up the Policy's applicable Limit of Liability in the payment of **Fines and Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, or Cyber Crime Expenses** or have deposited the Policy's remaining applicable Limit of Liability with a court of competent jurisdiction. We have no obligation or duty to respond to or cover any **Fines and Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, or Cyber Crime Expenses** directly relating to, in connection with or arising from a **Design Incident** or **Event** for which coverage is excluded or not otherwise afforded by the Policy. We are not obligated to pay or reimburse any **Fines and Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, or Cyber Crime Expenses** incurred by the **Insured** prior to the **Insured's** reporting the **Design Incident** or **Event** to us or which are excluded or otherwise not covered by the Policy.

3. We have the right to investigate, direct the defense, negotiate and, with the consent of the **Named Insured**, settle any **Claim** as we deem practical. If the **Named Insured** refuses to accept the judgment of the trial or appellate court or refuses to consent to any settlement we can negotiate, then subject to the Policy's remaining applicable Limit of Liability, our liability for such **Claim** is limited to and shall not exceed:
 - a. the amount for which such **Claim** could have been resolved and **Claim Expenses** incurred through the date of the **Named Insured's** refusal; and
 - b. fifty percent (50%) of any further covered **Damages** and **Claim Expenses** incurred following the date of the **Named Insured's** refusal, with the remaining fifty percent (50%) of such further **Damages** and **Claim Expenses** in excess of the amount for which the **Claim** could have been settled to be the sole responsibility of, and paid by the **Named Insured**.

SECTION V. LIMITS OF LIABILITY AND DEDUCTIBLE

- A. The Limits of Liability as stated on the Declarations and the rules detailed below fix the maximum amount we are obligated to pay for all **Damages, Claim Expenses, Fines and Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, Cyber Crime Expenses**, or payments made under Section VII. OTHER PAYMENTS from each **Claim** or **Event** (including **Related Claims** and **Related Events**) under this Policy as detailed in SECTION I. INSURING AGREEMENTS and SECTION VII. OTHER PAYMENTS. All Limits of Liability provided in SECTION I. INSURING AGREEMENTS and SECTION VII. OTHER PAYMENTS shall be part of, and not in addition to the Policy Aggregate Limit as stated on the Declarations. All Limits of Liability provided for SECTION VI. SUPPLEMENTARY PAYMENTS shall be in addition to the Policy Aggregate; however, the Company will not be obligated to reimburse any **Insured** for any expense after the Policy Aggregate Limit as stated in the Declarations has been exhausted.
- B. The Policy Aggregate Limit as stated on the Declarations is the most we will pay under this Policy for all **Claims, Design Incidents or Events** and once the Policy Aggregate Limit has been exhausted there will be no further duty to defend the **Insured** for a **Claim** or **Event** which may otherwise be covered by this Policy.
- C. Applicable rules to the Limits of Liability
 1. The applicable Limit of Liability stated in the Declarations is the maximum we will pay regardless of the number of **Insureds**, individuals or organizations that make a **Claim**, the number of **Claims** made, or the number of **Events**.
 2. If any of the Limits of Liability as shown in the Declarations shows NIL, that portion of this Policy is not applicable and no coverage shall apply for the corresponding insuring agreement(s).
 3. If any **Claim** or **Event** triggers multiple insuring agreements under this Policy, then we will only apply the highest Limit of Liability of any applicable insuring agreement. Regardless of how many insuring agreements apply to any **Claim** or **Event**, we shall not pay more than the single highest Limit of Liability under any applicable insuring agreement. In the event that the applicable Limits of Liability for such **Claim** or **Event** are exhausted, no other insuring agreement will apply to such **Claim** or **Event**.
- D. Deductible
 1. The Limits of Liability as stated on the Declarations will apply in excess of the applicable Deductible. The Deductible applies separately to each **Claim** and **Event** (including **Related Claims** and **Related Events**) and shall be paid by the **Named Insured**. The Deductible applies to covered **Damages, Claim Expenses, Fines and**

Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, and Cyber Crime Expenses.

2. At our discretion, we may advance payment of part or all of the Deductible amount, and upon notification of such payment being made, the **Named Insured** must promptly reimburse the Company for the amounts advanced by us.

3. Mediation of Claim

If **Mediation** is used as a means to resolve a **Claim** made against the **Insured** as respects a covered **Incident** or **Cyber Event**, and such **Claim** is resolved solely, directly and immediately by the **Mediation**, then the Deductible obligation of the **Named Insured** shall be reduced by 50%, subject to a maximum credit of \$25,000. We shall reimburse the **Named Insured** 50% of any portion of the Deductible payment made to us by the **Named Insured** after the conclusion of the **Claim** or as soon as practicable.

4. For any **Claim** and **Event** based upon, arising from, in consequence of, directly or indirectly resulting from, or involving in any way continuous, repeated, the same, related, or substantially similar facts, circumstances, subjects, situations, decisions, causes, persons, transactions, events, classes of persons or events, or a continuous, repeated, the same, related, or a substantially similar series of facts, circumstances, subjects, situations, decisions, persons, transactions, class of persons or events, only one Deductible shall apply. The Deductible that will be applied to such **Claim** and **Event** will be the higher of the applicable Deductibles. Furthermore, if a single **Claim** or **Event** (including **Related Claims** or **Related Events**) is subject to different Deductibles, the sum of such Deductibles paid by the **Named Insured** shall not exceed the largest applicable Deductible.

SECTION VI. SUPPLEMENTARY PAYMENTS

All payments made under this section of the Policy, unless otherwise specified, are not subject to the Deductible and are in addition to the Policy Aggregate. However, the Company will not be obligated to reimburse any **Insured** for any expense after the Policy Aggregate Limit as stated in the Declarations has been exhausted. Coverage provided under this section shall only apply to **Incidents** and **Events** taking place within the **Policy Territory**.

A. Pre-Claim Assistance

If during the **Policy Period**, you report a **Professional Incident, Pollution Incident, Drone Incident** or **Media Incident** (herein referred to as “reported incident”) to us in accordance with SECTION VIII. CONDITIONS A. Reporting of Claims, Events and Circumstances, then, until such time a **Claim** is made, we will pay any costs or expenses we incur as a result of investigating or monitoring such “reported incident”. The decision to incur any costs or expenses to investigate or monitor a “reported incident” shall be at our sole discretion.

The maximum amount payable per **Policy Period** under this section, regardless of the number of “reported incidents” or the number of **Insureds**, shall be the Limit of Liability for Pre-Claim Assistance as stated on the Declarations.

B. Disciplinary Proceeding and License Defense Hearing

We will reimburse the **Insured** for reasonable attorney’s fees, costs and expenses incurred in responding to a **Disciplinary Proceeding** or **License Defense Hearing** that is both first brought by a licensing authority against the **Insured** and reported in writing to the Company during the **Policy Period** by reason of a **Professional Incident** or **Drone Incident** that took place subsequent to the Retroactive Date and prior to the expiration date of this Policy.

The maximum amount payable per **Policy Period** under this section, regardless of the number of **Disciplinary Proceedings** and **License Defense Hearings** or the number of **Insureds**, shall be the Limit of Liability for **Disciplinary Proceeding** and **License Defense Hearing** as stated on the Declarations. Such request for reimbursement under this provision must be received by us in writing from the **Insured** during the **Policy Period**. The Company shall not be obligated to defend any **Disciplinary Proceeding** or **License Defense Hearing**, or pay any fine, penalty or award resulting from any **Disciplinary Proceeding** or **License Defense Hearing**.

C. ADA, FHA, OSHA, EPA Regulatory Actions

We will reimburse the **Insured**, upon written request, for reasonable attorney's fees and expenses incurred by the **Insured** with our prior written consent in responding to a regulatory or administrative action brought directly against the **Insured** during the **Policy Period** by a government agency under the Americans with Disabilities Act of 1990 (ADA), the Fair Housing Act (FHA), the Occupational Safety and Health Act (OSHA) or Environmental Protection Agency (EPA) provided that the regulatory or administrative action arises out of a **Professional Incident, Drone Incident, or Pollution Incident** that took place subsequent to the Retroactive Date and prior to the expiration date of this Policy.

The maximum amount payable per **Policy Period** under this section, regardless of the number of regulatory or administrative actions or the number of **Insureds**, shall be the Limit of Liability for ADA, FHA, OSHA, EPA Regulatory Actions as stated on the Declarations.

D. Subpoena Assistance

If during the **Policy Period** an **Insured** is served with a subpoena arising from the provision of **Professional Services**, we will pay on behalf of the **Insured** reasonable and necessary fees, costs and expenses incurred by us, or an attorney designated by us, in order to provide the **Insured** assistance in responding to or providing documentation as requested by such subpoena, providing and preparing testimony required by such subpoena or for legal representation at any court hearing, proceeding or government inquiry as required by such subpoena (herein referred to as "Subpoena Assistance"). Such request for "Subpoena Assistance" must be received by us in writing from the **Insured** during the **Policy Period** and be accompanied by a full copy of the subpoena. "Subpoena Assistance" will only be provided and paid if all of the following conditions are met:

1. the subpoena arises out of a lawsuit or proceeding to which no **Insured** is a party; and
2. no **Insured** has been engaged to provide advice or testimony in connection with the subject lawsuit or proceeding, nor has any **Insured** provided such advice or testimony in the past in connection with the subject lawsuit or proceeding.

The maximum amount payable per **Policy Period** for "Subpoena Assistance" is the Limit of Liability for "Subpoena Assistance" as stated on the Declarations, regardless of the number of subpoenas or **Insureds** are served with such subpoenas.

E. Court Attendance Costs

If you are required to attend a trial, hearing or arbitration proceeding pursuant to a covered **Claim**, then we will reimburse the **Insured** up to the Limit of Liability as stated on the Declarations per **Policy Period** for those reasonable and necessary expenses incurred in connection with such attendance. In order for coverage to apply, the **Insured** must submit to the Company all records, documents and detailed calculation of reasonably incurred expenses within the **Policy Period**.

F. Reputation Protection Expense

We will pay actual, necessary and reasonable expenses approved by the Company in writing and incurred by the **Insured** in retaining a public relations consultant to protect or restore the **Insured's** business reputation or in planning, implementing, executing and managing a public relations campaign under the direction of a public relations consultant to mitigate or minimize any actual or anticipated effects of negative publicity which is a direct result of an **Incident**.

The maximum amount payable per **Policy Period** under this section, regardless of the number of **Claims** or the number of **Insureds**, shall be the Limit of Liability for Reputation Protection Expense as stated on the Declarations.

G. Criminal Reward Fund

We will reimburse the **Named Insured**, upon our prior written approval, for payments made from a Criminal Reward Fund, which shall mean monies offered by the **Named Insured** for information that leads to the arrest and conviction of any individual(s) committing or trying to commit any illegal act related to any coverage under this Policy. However, the Company shall not reimburse any payments made from a Criminal Reward Fund for, and this policy shall not cover any amount based upon, any information provided by the **Insured**, the **Insured's** auditors, whether internal or external, any individual hired or retained to investigate the aforementioned illegal acts, or any other individuals with responsibilities for the supervision or management of the aforementioned individuals.

The maximum amount payable per **Policy Period** under this section, regardless of the number of **Claims**, **Events**, or the number of **Insureds**, is the Limit of Liability for Criminal Reward Fund as stated on the Declarations.

SECTION VII. OTHER PAYMENTS

All payments made under this section of the Policy, unless otherwise specified, are not subject to the Deductible, but shall be included within the applicable Limits of Liability. Our Policy Aggregate Limit will be reduced by the amounts paid under this section. The Company will not be obligated to reimburse any **Insured** for any expense after the Policy Aggregate Limit as stated in the Declarations has been exhausted. Coverage provided by any insuring agreement shall only apply to **Incidents** and **Events** taking place within the **Policy Territory**.

A. Emergency Pollution Response Expense

We will reimburse the **Insured** for **Emergency Pollution Response Expense**, provided such fees, costs, or expenses are both incurred and reported to us in writing within ten (10) days from the discovery of a **Pollution Incident**, and that the **Pollution Incident** took place subsequent to the Retroactive Date and prior to the expiration date of this Policy.

The maximum amount payable per **Policy Period** under this section, regardless of the number of **Pollution Incidents** or the number of **Insureds**, shall be the Limit of Liability for Emergency Pollution Response Expense as stated on the Declarations.

B. Senior Executive Officer Personal Funds Theft

We will reimburse any **Senior Executive Officer** for personal financial loss first discovered by them and reported to us during the **Policy Period** resulting from theft of money or other financial assets from a personal bank account or identity theft of the **Senior Executive Officer** as a direct result of an **Event**.

The maximum amount payable per **Policy Period** under this section, regardless of the number of **Claims**, **Events**, or the number of **Insureds**, shall be the Limit of Liability for Senior Executive Officer Personal Funds Theft as stated on the Declarations.

C. AIA Initial Decision Maker Expense

We will reimburse the **Insured** for those reasonable fees, costs, and expenses incurred by the **Insured** for fulfilling the role of an Initial Decision Maker ("IDM"), provided the **Insured** is designated as the IDM in a valid and executed American Institute of Architects (AIA) contract for a project on which the **Insured** is performing work, and provided that such fees, costs, and expenses are first approved in writing by us and are incurred during the **Policy Period**.

The maximum amount payable per **Policy Period** under this section, regardless of the number of **Insureds**, projects, or instances requiring the **Insured** to serve as IDM, shall be the Limit of Liability for AIA Initial Decision Maker expense as stated on the Declarations.

SECTION VIII. CONDITIONS

A. Reporting of Claims, Events and Circumstances

1. The **Named Insured** must give Admiral written notice as soon as practicable, but in no event later than the Policy expiration, the cancellation date, or AERP, whichever is latest, of any **Claim** or any **Event** or circumstance which may reasonably be expected to give rise to a **Claim** against an **Insured** to which this Policy applies. That notice shall be made to:

Admiral Insurance Group, a Berkley Company
Attn: Claims Department
232 Strawbridge Drive, Suite 300
Moorestown, NJ 08057
admclaims@admiralins.com
2. If the **Insured** becomes aware of an **Event** that is first discovered during the **Policy Period** and may be covered by this Policy, the **Insured** must provide written notice of such **Event** to the Company as soon as practicable, but in no event later than the expiration date of this Policy or AERP, or no longer than the minimum time period required by the applicable **Privacy Law**.
 - a. The **Insured** must immediately send copies to the Company of any demands, notices, or legal papers received in connection with any **Event**, and must authorize the Company to obtain records and any other information related to the **Event**.
 - b. As an Admiral Policyholder, you are entitled to receive data breach coach services via an **Event** Hotline dedicated to Admiral Policyholders with the first 60 minutes of such consultation free to you following the discovery of an **Event** or possible **Event**. You may use an **Event** Hotline not provided by the Company with our prior written consent. All expenses for an **Event** Hotline used that is not provided by Admiral and all **Event** Hotline expenses incurred beyond the first 60 minutes with the Admiral provided **Event** Hotline shall reduce our Limits of Liability. See the Admiral Cyber Breach Coach Hotline notice attached to this Policy for additional details on the Admiral provided **Event** Hotline.
3. The **Named Insured** must immediately contact Admiral Cyber Breach Coach Event Hotline by telephone or email in the event of any **Cyber Event** to which this insurance may apply under SECTION I. INSURING AGREEMENT F. CYBER EXTORTION, and:
 - a. the **Named Insured** shall immediately thereafter provide written notice to the Company by express mail or email, and such written notice shall be required to be received within 5 days following the **Cyber Event** as defined under SECTION I. INSURING AGREEMENT F. CYBER EXTORTION in order to be considered for coverage hereunder; and
 - b. the **Named Insured** is obligated to keep their purchase of coverage under SECTION I. INSURING AGREEMENT F. CYBER EXTORTION confidential.
4. All **Insureds** must fully assist and cooperate with us in the calculation of any **Business Interruption Loss**, **Dependent Business Interruption Loss** or **Reputational Harm Loss** arising from a covered **Cyber Event**. Calculation of any **Business Interruption Loss**, **Dependent Business Interruption Loss** or **Reputational Harm**

Loss shall be based on an analysis of the revenues and costs generated during each month of the twelve months prior to the loss occurring and will also take into account the reasonable projection of future profitability or otherwise had no loss occurred and will include all material changes in market conditions which would affect the future profits generated. Your requests for reimbursement shall be accompanied by a computation of the loss. This shall set out in detail how the loss has been calculated and what assumptions have been made. You will produce any documentary evidence, including any applicable reports, books of accounts, bills, invoices and other vouchers and copies which we may require. You will afford every assistance in our investigations including submitting, under oath, to the sworn statement of the validity of such loss and its calculation. Any payments under **Business Interruption Loss**, **Dependent Business Interruption Loss** or **Reputational Harm Loss** will be reduced, where applicable, by the extent to which you:

- a. use damaged or undamaged **Electronic Data**;
 - b. make use of available stock, merchandise or other **Electronic Data**;
 - c. use substitute facilities, equipment or personnel;
 - d. are subject to our final determination of the loss of the **Business Interruption Loss**, **Dependent Business Interruption Loss** or **Reputational Harm Loss**.
5. All **Insureds** must fully assist and cooperate with us in the calculation of any **Rectification Expenses** and in order for coverage to apply under SECTION I. INSURING AGREEMENT D. RECTIFICATION EXPENSES, the following conditions must be met:
- a. Before incurring any **Rectification Expenses**, you demonstrate to us the reasonableness and necessity of the proposed cost in light of the projected benefit in terms of rectifying or avoiding a covered **Claim**. Subject to SECTION VIII. CONDITIONS C. Prior Written Consent, we must provide our express written consent for such **Rectification Expense**, except in the event of an **Emergency Response**; and,
 - b. **Rectification Expense** incurred as **Emergency Response** shall be reported as soon as practicable, but no later than five (5) business days from the occurrence requiring the **Emergency Response**.

The Company shall have the sole discretion to determine when a **Design Incident** has resulted in a **Claim** and once such **Design Incident** results in a **Claim** against you:

- a. we will not pay any additional **Rectification Expenses** after the date such **Claim** is made; and
- b. our obligation to pay any **Damages** and **Claim Expenses** resulting from such **Claim** shall be reduced by the amount of **Rectification Expenses** the Company paid before the **Claim** was made.

In the event of any disagreement regarding whether a **Design Incident** has occurred, whether **Emergency Response** was reasonable and necessary, or whether proposed **Rectification Expenses** are reasonable, only the **Named Insured** and the Company shall have the right to dispute such matters. No other **Insured** shall have the right to initiate, join, or participate in any such dispute. If such dispute arises, The **Named Insured** and the Company agree to submit any such dispute to a form of alternative dispute resolution reasonably acceptable to both parties. If the **Named Insured** and the Company are unable to agree on the form of alternative dispute resolution, the dispute shall be submitted to binding arbitration administered by the American Arbitration Association under its Construction Arbitration Rules, and judgment on the award rendered by the arbitrators may be entered in any court having jurisdiction thereof.

6. All **Insureds** must fully assist and cooperate with us in the conduct, defense, investigation, negotiation and settlement of any **Claim** or **Event**. At our request, the **Insured** must submit to an examination under oath; provide us with written statements as requested by us; attend meetings and negotiations; and produce and make available all information, records, documents and other materials which we deem relevant to the **Claim** or **Event**.
7. All notices of **Claims**, **Events** or circumstances which are reasonably expected to result in a **Claim** must provide the following information: the potential claimant(s) by name or description; the names of the **Insureds** involved; the time, date, location and the description of the specific circumstance which forms the basis of the **Claim**, **Event** or potential **Claim** including the nature of the potential **Damages** arising from such specific **Claim** or circumstance; the circumstances by which the **Insured** first became aware of the specific **Claim**, **Event** or circumstance; and the reason the **Insured** reasonably believes the subject circumstance is likely to trigger coverage under this Policy.
8. As respects any **Claim** or **Event**, the **Insured** must attend hearings, depositions, proceedings, trials and appeals; and assist us in affecting settlements, securing and giving evidence and obtaining the attendance of witnesses, and pursuing or enforcing any right of contribution or indemnity against a person or entity who may be liable to any **Insured**.

9. No **Insured** will, except at its own cost, voluntarily make a payment; admit liability; settle a **Claim**; settle an **Event**, retain attorneys, consultants, or related vendors; or assume any other obligation or incur any other expense without the Company's prior written consent.
10. The **Insured** must immediately send the Company copies of all demands, notices, summonses or legal papers received in connection with any **Claim** or **Event**. The **Insured** must do whatever is necessary to secure and affect any rights of indemnity, contribution or apportionment that the **Insured** may have. The **Insured** shall accept our assignment of counsel and the **Insured** shall refrain from discussing any **Claim** or **Event** with anyone other than counsel retained to represent the **Insured** or our representatives.
11. If during the **Policy Period**, you first become aware of any specific and identifiable **Incident** and during the **Policy Period** you give written notice to us of:
 - a. the specific **Incident** including the date(s) and parties involved; and
 - b. the **Damages** which have or may result from such **Incident**; and
 - c. the circumstances by which you first became aware of such **Incident**
 then any subsequent **Claim** made against the **Insured** arising out of the **Incident** which is the subject of the written notice reported under this provision will be deemed to have been made at the time written notice complying with the above requirements was first reported to us.

B. Related Claims and Related Events

1. All **Related Claims**, whenever made, shall be deemed to be a single **Claim**, regardless of:
 - a. the number of **Related Claims**;
 - b. the number or identity of claimants;
 - c. the number or identity of **Insureds** involved or against whom **Related Claims** have been or could have been made;
 - d. whether the **Related Claims** are asserted in a class action or otherwise; or
 - e. the number and timing of the **Related Claims**, even if the **Related Claims** comprising such single **Claim** were made in more than one **Policy Period**.

All **Related Claims** shall be treated as a single **Claim** made when the earliest of such **Related Claims** was first made, or when the earliest of such **Related Claims** is treated as having been made under SECTION VIII. CONDITIONS A. Reporting of Claims, Events and Circumstances, whichever is the earlier date.

2. All **Related Events**, whenever occurring, shall be deemed to be a single **Event** regardless of:
 - a. the number of **Related Events**;
 - b. the number or identity of **Insureds** involved; or
 - c. the number and timing of the **Related Events**, even if the **Related Events** comprising such single **Event** occurred in more than one **Policy Period**.

All **Related Events** shall be treated as a single **Event** occurring when the earliest of such **Related Events** first occurred.

C. Prior Written Consent

Where this Policy provides that an act, right or provision is subject to our prior written consent, the following conditions apply:

1. the **Insured** will have the burden to establish the reasonableness of the matter, event or proposed settlement or payment for which our prior written consent is required;
2. the **Insured** agrees that the decision whether we will supply our prior written consent is a decision made at our sole discretion;
3. the **Insured** agrees that we have the right to investigate the matter, event or proposed settlement or payment and the **Insured** agrees to fully cooperate with us in our investigation; and
4. the **Insured** agrees to submit to an Examination Under Oath at our request, for as many times as we may request.

D. Transfer of Rights of Recovery

If there is a payment made by us, we shall be subrogated to all of the **Insured's** rights of recovery against any person or organization. The **Insured** will cooperate with us and do whatever is necessary to secure and recover upon these rights, including but not limited to executing any documents necessary to enable us to effectively bring suit in the **Insured's**

name. The **Insureds** shall do nothing that may prejudice the Company's position or potential or actual rights of recovery. The obligations of the **Insureds** hereunder shall survive the expiration or cancellation of this Policy.

Any amount recovered by us upon our exercise of such rights of recovery will be applied on the following terms and in the following order:

1. repayment of our expenses incurred by exercise of such subrogation rights, including the cost of any authorized representatives who assist in that process;
2. repayment of **Damages, Claim Expenses, Fines and Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, or Cyber Crime Expenses** paid by the **Named Insured** in excess of the Limits of Liability provided by this Policy;
3. **Damages, Claim Expenses, Fines and Penalties, Rectification Expenses, Privacy Breach Expenses, Cyber Extortion Expenses, Electronic Data Restoration Expenses, Business Interruption Loss, Dependent Business Interruption Loss, Extra Expenses, Reputational Harm Loss, or Cyber Crime Expenses** paid by the Company;
4. amounts paid by the **Named Insured** toward the Deductible.

Furthermore, in the event we pay you any **Cyber Crime Expenses** and you are able to recover such **Cyber Crime Expenses** you will immediately reimburse us the amounts you were able to recover.

Notwithstanding the foregoing, the Company agrees to waive any right of subrogation hereunder against a client of the **Insured**, with respect to any payment made in connection with a **Claim** or **Cyber Event** if prior to the occurrence of any **Incident, Regulatory Proceeding or Cyber Event** giving rise to such **Claim** or **Cyber Event**, the **Named Insured** or **Subsidiary** had agreed to waive its rights of subrogation against such client pursuant to a prior written contract or agreement.

E. Other Insurance

This Insurance shall apply in excess of any other valid and collectible insurance available to any **Insured**, whether such insurance is stated to be primary, contributory, excess, contingent or other, including any self-insured retention or Deductible portion thereof.

This condition does not apply to **Other Insurance** that is specifically written to apply in excess of the limits provided by this Policy by reference in such other policy to the Policy Number in this Policy's Declarations.

When any **Other Insurance** has a duty to defend a **Claim** or respond to an **Event**, we will have no duty to defend such **Claim** or respond to such **Event**; if no such **Other Insurance** defends the **Claim** or responds to the **Event**, we shall have the right but not the duty to defend the **Claim** or respond to the **Event**.

F. Changes Made to this Policy

The terms and conditions of this Policy cannot be waived or changed except by specific written endorsement or notice issued by us and made part of the Policy.

G. Assignment of the Insured's Interest

The interest of the **Insured** under this Policy is not assignable to any other person or organization, except with the Company's written consent.

H. Cancellation

This policy may be canceled by the **Named Insured** by returning the Policy to us or our authorized representatives. The **Named Insured** can also cancel this Policy by written notice to us stating at what future date cancellation is to be effective. If the **Named Insured** cancels, earned premium shall be computed using the customary short rate table or the amount stated elsewhere in this Policy as Minimum Retained Premium, whichever is greater, subject; however, to a retention by the Company of not less than the percentage of premium as shown on the Declarations.

We can cancel the Policy by providing written notice to the **Named Insured**, at the address last known to us. We will provide written notice at least thirty (30) days before cancellation is to be effective and the earned premium will be computed pro rata. However, if we cancel because you fail to pay a premium or Deductible when due, only ten (10) days written notice of cancellation will be given and earned premium will be computed using the customary short rate table.

The mailing of any notice of cancellation shall be sufficient proof of notice.

This Policy will terminate on the effective date of the cancellation. Return of unearned premium is not a condition of cancellation. Unearned premium will be returned by us as soon as practicable.

I. Bankruptcy

Bankruptcy or insolvency of the **Insured** or the **Insured's** estate shall not relieve us of any of our obligations under this Policy.

J. Application

The statements made in any Application(s) and any supplementary material(s) are deemed to be made on behalf of the **Named Insured** and all other **Insureds** and are deemed material. This Policy is issued based upon the truth and accuracy of the representations made in any Application(s) and any supplementary material(s).

No knowledge or information possessed by any **Insured** shall be imputed to any other **Insured**, except for material facts or information known to the person or persons who signed the Application. In the event of any material untruth, misrepresentation or omission in connection with any of the particulars or statements in any Application(s) or any supplementary material(s), this Policy shall be void with respect to any **Insured** who knew of such untruth, misrepresentation or omission or to whom such knowledge is imputed.

K. Audit

We may examine and audit your books and records at any time during the **Policy Period** and within three (3) years after the expiration or termination date of this Policy, as far as they relate to this Policy.

L. Action Against Us

No action shall be brought against us by any **Insured**, unless, as a condition precedent thereto:

1. all **Insureds** have fully complied with all the terms and conditions of this Policy; and
2. the amount of **Damages** has been fixed or rendered certain:
 - a. by final judgment against the **Insured** after trial of the issues; or
 - b. the time to appeal such judgment has expired without an appeal being taken; or
 - c. if appeal is taken, after the appeal has been determined; or
 - d. the **Claim** is settled in accordance with the terms and conditions of this Policy.
3. No individual or entity shall have any right under this Policy to join the Company as a party to any **Claim** to determine the liability of any **Insured**; nor shall the Company be impleaded by the **Insured** or his/her/its legal representative in any such **Claim**.

In no event shall any action brought by anyone be maintained against us unless such action is brought within twenty-four (24) months from the time the right to bring action first became available.

M. False or Fraudulent Claims

If an **Insured** reports any **Claim** or **Event** knowing such to be false or fraudulent, this Policy shall become void and all insurance coverage hereunder shall be forfeited as of the inception date of this Policy.

N. Terms and Conditions of Policy Conformed to Statute

Where necessary, the terms and conditions of this Policy will be amended to conform to applicable law.

O. Premium

The premium amount for this Policy is stated in the Declarations and is for coverage for the **Policy Period**. If, during the **Policy Period**, there is a change in coverage afforded, we have the right to adjust the premium as of the date of the change. Any premium adjustment shall be made in accordance with our prevailing rules and rates.

Premium shown as advance premium is a minimum and deposit premium. At the close of each audit period we will compute the earned premium for that period. Audit premiums are due and payable by notice to the first **Named Insured**.

If the premium for this Policy is a flat premium, it is not subject to adjustment.

P. Change in Risk or Controlling Interest

If, during the **Policy Period**, an **Insured** is dissolved, sold, acquired by, merged into or consolidated with another entity such that the **Insured** is not the surviving entity; or a third party receiver, conservator, trustee, liquidator, rehabilitator or any similar official is appointed for or with respect to the **Insured**, then coverage under this Policy shall continue in full force and effect until the expiration date or any earlier cancellation or termination date, but this Policy shall only apply to **Incidents, Claims or Events** first committed or allegedly committed before the effective date of such change.

If an **Insured** becomes aware that any of the particulars provided by the **Insured** in the Application have materially changed, then the **Insured** must advise us as soon as is practicable of such changes. We reserve the right to amend the terms, conditions or premium of this Policy accordingly.

Q. Newly Formed Subsidiaries

If, during the **Policy Period**, the **Named Insured** forms a new entity or acquires any entity or voting securities in another entity which, as result of such formation or acquisition, the **Named Insured** has more than 50% of the legal or ownership interest, then such entity shall be deemed an **Insured** under this Policy, but only as respects **Incidents** or **Events** taking place after the **Named Insured** forms, acquires such entity or voting equity securities, but only if all of the following conditions are met:

1. within 90 days of such formation or acquisition, the **Named Insured** has provided the Company with full particulars of the details of such formation or acquisition, and the Company has agreed in writing to insure such new **Subsidiary**, but the Company shall not be required to insure such new **Subsidiary**; and
2. the **Named Insured** has agreed in writing to any changes in terms and conditions of this Policy related to the new **Subsidiary** and paid any additional premium, if any, charged by the Company.

R. Entire Agreement

The **Insured** agrees that this Policy, including the Application(s), Declarations and any endorsements, constitutes the entire agreement between them and the Company or any of its agents relating to this insurance.

S. Economic and Trade Sanctions or Violations of Law

Any **Claim**, **Event** or other transaction or matter which is uninsurable under any act, statute, rule, regulation, ordinance, common law, or other law of the United States of America concerning trade or economic sanctions or export control laws are not covered under this Policy.

T. Authorization Clause

By acceptance of this Policy, the **Named Insured** shall be the sole agent of and shall act on behalf of the **Insureds** for the purposes of payment or return of premium; receipt and acceptance of any endorsement issued to form a part of this Policy; providing and receiving notice of cancellation, termination, or nonrenewal; for completing Applications and the making of any statements or representations; for making any change to this Policy; and for the exercising or declining to exercise any right under this Policy, including the purchase of an Extended Reporting Period.

U. Severability of Insureds

Except with respect to the Limits of Liability, Deductible, the Authorization Clause of this Conditions Section and as otherwise provided in this Policy, this insurance applies as if each **Insured** were the only **Insured** and separately to each **Insured** against whom a **Claim** is made.

V. Policy Territory

This Policy applies to **Incidents** and **Events** taking place anywhere in the universe except any location that is subject to trade or other economic sanctions or embargo by the United States of America, or where coverage is otherwise prohibited by the United States Office of Foreign Assets Control.

1. **Suits, Regulatory Proceedings**, brought outside of the United States of America, Puerto Rico and Canada

If a **Suit** or a **Regulatory Proceeding** is brought or instituted against an **Insured**, in whole or in part, outside of the United States of America (including its territories and possessions), Puerto Rico or Canada, the following shall apply:

- a. We will have the right but not the duty to defend the **Suit** or **Regulatory Proceeding**.
- b. The **Insured** may initiate a defense of the **Suit** or **Regulatory Proceeding** in accordance with the following conditions:
 1. We retain the right to assume and control the investigation, adjustment or defense of such **Suit** or **Regulatory Proceeding**;
 2. In the event we do not exercise our right to defend or are prevented from doing so because we are not licensed or permitted by law in the applicable jurisdiction to defend the **Insured**, we will reimburse the **Insured** for any reasonable and necessary **Claim Expenses** that we would have paid had we exercised our right to defend and that are incurred by the **Insured** for the investigation of a **Claim** or defense of a **Suit** or **Regulatory Proceeding** seeking **Damages** to which this insurance applies. We will not reimburse any **Claim Expenses** or **Damages** incurred and/or paid by any **Insured** without our prior written consent.

2. Payment of Sums Outside of the United States of America, Puerto Rico and Canada

- a. If the **Insured** becomes legally obligated to pay sums because of **Damages** to which this insurance applies in a part of the **Policy Territory** outside of the United States of America (including its territories and possessions), Puerto Rico or Canada, and we are prevented from paying such sums and associated

Claim Expenses, if applicable, because we are not licensed or permitted by law in the applicable jurisdiction to pay such sums on the **Insured's** behalf, we will reimburse the **Insured** for such sums to the extent permitted by law.

- b. The premium and all payments or reimbursements we make for **Damages** and **Claim Expenses** because of judgments or settlements are payable when due in United States currency to a United States domiciled **Insured** unless otherwise specified in the Declarations. If judgment is rendered, settlement is made or another element of sums paid for **Damages** or **Claim Expenses** is stated in a currency other than United States currency, then payment under this insurance shall be made in the currency stated in the Declarations at the prevailing rate of exchange as published on OANDA.com as of the date payment is made. In no event shall we pay more than the Limits of Insurance shown in the Declarations.
3. Coverage Disputes
Any legal disputes with us as to whether there is coverage under this Policy must be filed in state or federal courts within the United States of America (including its territories and possessions).
4. Compulsory Coverage
 - a. No Substitute for Compulsory Coverage
This insurance is not a substitute for any insurance coverage that is required by law, regulation or other governmental authority that is required to be in force to satisfy the legal requirements of a given jurisdiction.
 - b. Failure to Maintain Compulsory Coverage
Failure to maintain such insurance coverage required by law, regulation or other governmental authority will not invalidate this insurance; however, this insurance will apply as if the insurance coverage required by law, regulation or other governmental authority was in full effect.

SECTION IX. EXTENDED REPORTING PERIOD

As a condition precedent to your obtaining an Automatic Extended Reporting Period (AERP) or an Extended Reporting Period (ERP), the full premium of this Policy, premium for endorsements or audits, and payment of deductibles must have been paid in full. Neither the AERP nor the ERP reinstate or increase the Limits of Liability. Neither the AERP nor the ERP extend the **Policy Period** or change the scope of coverage afforded by this Policy.

A. Automatic Extended Reporting Period

If we or you cancel or non-renew this Policy for any reason other than non-payment of premium, non-payment of deductible, non-compliance with any terms and conditions of this Policy, or fraud or material misrepresentation, then you shall be entitled to an AERP of (60) sixty days from the date of Policy expiration or cancellation to report, in writing to us, **Claims** first made against the **Insured** or **Events** first discovered by a **Senior Executive Officer** during the **Policy Period** and which arise out of an **Incident, Cyber Event, Regulatory Proceeding, or Cyber Crime Event** that takes place subsequent to the Retroactive Date (if applicable) and prior to the Policy expiration or cancellation date. If the ERP in paragraph B. below is purchased, then this AERP shall be included within such ERP.

B. Extended Reporting Period

If we or you cancel or non-renew this Policy for any reason other than non-payment of premium, non-payment of deductible, non-compliance with any terms and conditions of this Policy, or fraud or material misrepresentation, then you shall be entitled to purchase an ERP from the options below, which begins from the date of Policy expiration or cancellation, to report, in writing to us, **Claims** first made against the **Insured** during the purchased ERP and which arise out of an **Incident, Cyber Event or Regulatory Proceeding** which takes place subsequent to the applicable Retroactive Date and prior to the Policy expiration or cancellation date.

1. ERP Options:
 - a. One year for a premium not to exceed 125% of the annual premium;
 - b. Two years for a premium not to exceed 150% of the annual premium;
 - c. Three years for a premium not to exceed 175% of the annual premium.
2. Your right to purchase the ERP must be exercised by notice in writing to us no later than thirty days (30) after the expiration or cancellation date of this Policy and must include payment of premium for the ERP. Upon receipt of the written notice to us and the premium for the ERP, the entire premium is deemed fully earned and is non-refundable.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MODIFIED DEDUCTIBLE ENDORSEMENT

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE FORM

In consideration of the premium charged, it is understood and agreed that the Deductible paragraph as shown in the LIMITS OF LIABILITY AND DEDUCTIBLE Section of this Policy is amended to include the following:

If the **Named Insured** enters into a written contract or agreement with a customer or client prior to the performance of any **Professional Services** or **Contractor Services** on behalf of such customer or client, wherein the **Named Insured** agrees under the terms of said contract or agreement that the **Named Insured's** Deductible shall be less than the amount set forth on the Declarations Page of this Policy, then:

1. the **Named Insured** will promptly indemnify and save us harmless for the difference between such lower Deductible amount and the Deductible amount set forth on the Declarations Page of this Policy;
2. the **Named Insured** will wholly and completely indemnify and save us free and harmless from any costs, expenses and attorney's fees which may be incurred in enforcing this indemnity agreement; and
3. the **Named Insured** will promptly reimburse us upon demand for any payment made by us pursuant to this endorsement.

All other terms and conditions of this Policy remain unchanged and apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT - COLORADO

Pursuant to any statute of any state, territory or district of the United States which makes provision therefore, the Company providing this insurance hereby designates the Superintendent, Commissioner or Director of Insurance or other Officer specified for that purpose in the Statute, or his successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of you or any beneficiary hereunder arising out of this contract of insurance, and hereby designates the above named as the person to whom the said Officer is authorized to mail such process or a true copy thereof.

It is further agreed that service of process in such suit may be made upon CT Corporation System at 7700 E Arapahoe Road, Suite 220, Centennial, CO 80112 and that in any suit instituted against the Company upon this policy, it will abide by the final decision of such Court or of any Appellate Court in the event of an appeal. Nothing herein shall constitute a selection or designation of forum, or a waiver of any of the Company's rights to select a forum or court, including any of the federal courts of the United States. This includes any right to commence an action in or remove or transfer an action to the United States District Court or any other court of competent jurisdiction, as permitted by law.

AdmiralPro™ Design | AdmiralPro™ Build Professional Liability Risk Management Program

As a valued Admiral Policyholder, you have access to exclusive complimentary services through the SmartRisk Risk Management Program.

SmartRisk is a leading risk and performance management consultancy for the design and construction industry. The firm's focus is on the improvement of overall performance, profitability and reduction of risk and liability exposures through effective risk management solutions.



Services Included with Your Policy

Contract Review: SmartRisk will help identify key provisions that could expose your business to unnecessary risk and provides expert insights and suggested language to help you mitigate risk.

SmartRisk Report Newsletters: This resource addresses current topics of interest in the design and construction industry.

Risk Management Documents: Guidance documents, reports, checklists, forms, survey reports, white papers, industry best practices.

Loss Prevention Assistance: Guidance for concerns, issues or potential problems that may have professional liability implications - prior to a claim being made.

Access Services

For **Contract Review**, please contact SmartRisk directly at info@smartrisk.biz. Be sure to reference your current policy number and policy expiration date when reaching out.

To access additional services, please visit the SmartRisk website at:
<https://www.smartrisk.biz/guidance-documents-and-best-practices/>
Use Access Code: AdmiralAccess

These additional services do not alter the terms or conditions of this Policy. If you discover or suspect you have sustained an **Incident** or **Event** as defined in this Policy, please notify the Admiral Claims Department immediately, in accordance with the Policy's Claim Reporting requirements.

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